

**FEDERAL MARITIME COMMISSION**

**WASHINGTON, D.C.**

**INFORMAL DOCKET NO. 1880(F)**

**CLUTCH AUTO LTD.**

**v.**

**INTERNATIONAL TOUCH CONSOLIDATOR, INC.,  
MacANDREWS AND COMPANY, LTD.,  
ROSMARINE SHIPPING PRIVATE LIMITED, and  
HITOS LINER AGENCY PRIVATE LIMITED**

**INFORMAL DOCKET NO. 1885(F)**

**D&W CLUTCH AND BRAKE**

**v.**

**INTERNATIONAL TOUCH CONSOLIDATOR, INC.,  
MacANDREWS AND COMPANY, LTD., and  
ROSMARINE SHIPPING PRIVATE LIMITED**

---

**OCTOBER 4, 2007, PROCEDURAL ORDER, ATTACHMENT A  
ADMINISTRATIVE LAW JUDGE TENTATIVE FINDINGS OF FACT  
APPENDIX**

---

## TABLE OF CONTENTS

| <u>DOCUMENT</u>                                                                                                                                            | <u>PAGE</u> |
|------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|
| Clutch Auto Complaint .....                                                                                                                                | 1           |
| D&W Complaint .....                                                                                                                                        | 8           |
| International Touch Consolidator, Inc., Bill of Lading No. RSPL/DEL/BAL/05151 .....                                                                        | 17          |
| April 27, 2007 Reply on Behalf of Rosmarine Shipping Private Limited with<br>Annexure I.B, Annexure III.D, Annexure IV, and Annexure VI (Index only) ..... | 18          |
| Fax dated August 10, 2006, from International Touch Consolidator, Inc., to<br>Venetia D. Bell, FMC Settlement Officer .....                                | 37          |
| MacAndrews Bill of Lading MCAWDELORF00157 .....                                                                                                            | 38          |
| Memorandum dated July 6, 2006, from Ronald D. Murphy to Venetia Bell .....                                                                                 | 40          |
| Respondent's [International Touch] Answer to [Clutch Auto] Complaint .....                                                                                 | 41          |
| MacAndrews's Opposition to Informal Procedure [Clutch Auto] .....                                                                                          | 46          |
| MacAndrews's Notice of Objection to Informal Proceedings [D&W] .....                                                                                       | 48          |
| Respondent's [International Touch] Answer to [D&W] Complaint .....                                                                                         | 50          |
| Respondent's [International Touch] Amended Answer to [D&W] Complaint .....                                                                                 | 54          |
| Clutch Auto Invoice No. EX/2005-2006/72 .....                                                                                                              | 58          |
| Clutch Auto Response Order to Supplement the Record dated July 27, 2007 .....                                                                              | 59          |
| Shipping Bill for Export No. 1554103 .....                                                                                                                 | 64          |
| International Touch Consolidator Inc. Arrival Notice/Remarks .....                                                                                         | 68          |
| Affidavit of Raymond Wu in Support of Motion for Summary Judgment .....                                                                                    | 69          |
| Affidavit of Rajesh Bhatia in Support of Motion for Summary Judgment .....                                                                                 | 72          |
| Rosmarine Shipping Pvt. Ltd. Debit Note ROS/DEL490 .....                                                                                                   | 75          |
| Clutch Auto Limited Cheque Payment Voucher dated December 15, 2005 .....                                                                                   | 76          |
| Canara Bank "To whom so ever it may concern" dated 28 May 2007 .....                                                                                       | 77          |



**Exhibit No. 1 to Subpart S [502.304(a)]**

**Small Claim Form for Informal Adjudication and Information Checklist**

**Federal Maritime Commission, Washington, D.C.**

**Informal docket No. ....1880(1).....**

**CLUTCH AUTO LTD. INDIA, FARIDABAD, INDIA.**

(Address and other details pl. see Annexure - I )

**(CLAIMANT)**

**VS.**

**1. INTERNATIONAL TOUCH CONSOLIDATOR INC., USA. (RESPONDENT - I)**

In Joint Venture with [as per Section 10(e) of Shipping Act 1984]

**ROSMARINE SHIPPING PRIVATE LIMITED, New Delhi, India.**

**And**

**3. MaCANDREWS & COMPANY LIMITED, USA ( Respondent - II)**

(Address and other details pl. see Annexure - I )



- I. The Claimant, Clutch Auto Limited (herein referred as CAL) is a Public Limited Company incorporated in India since 1971.**

**Represented by :** Mr. V.K. Mehta, Vice Chairman & Mg. Director.

**Nature of business :** Manufacturer and exporter of Clutch, Clutch Assembly & Clutch Kits for Commercial Vehicles, Automotive Applications, Agricultural Tractors & Off Highway Vehicles.

**Principal place of Business :** 12/4, Delhi Mathura Road, Faridabad, Haryana, India.



000001

Establishments at

Clutch Auto Ltd., Chicago, USA.  
(Distribution warehouse).

Clutch Auto Pioneer Clutch, Inc.,  
Meridian, MS 39307.

## II The Respondent

- a) **INTERNATIONAL TOUCH CONSOLIDATOR INC** (herein referred as ITC) is a freight forwarder / common carrier incorporated in Jamaica, NY, USA. Represented by Mr. Raymond Wu.  
**FMC Organization No. 014239.**

In Joint Venture with [as per Section 10(e) of Shipping Act 1984]

**ROSMARINE SHIPPING PRIVATE LIMITED** (herein referred as Rosmarine), a firm engaged in transportation of goods to overseas destinations.

Represented by Mr. Rajesh Bhatia, Managing Director.  
Mr. S. K. Gosain, Director.

And

- (b) **MaCANDREWS & COMPANY LIMITED** (herein referred as MacAndrews), USA, an Ocean Common Carrier.  
Represented by Ms. Mary Sullivan, Owner Representative.  
**FMC Organization No. ....**

## III. The matters that gave rise to the claim are:

### A. Malafide intention

- B/L No. RSPLDELBAL005151 dt. 14 December, 2005 issued by Rosmarine as agents on behalf of their Principals ITC duly mentioning "freight prepaid at Delhi subject to realization" & "FREIGHT PREPAID, FREIGHT AS ARRANGED, IHC PREPAID"



000002.

- Payment towards this shipment was paid by CAL vide cheque no. 954571 dt. 16<sup>th</sup> January 2006 for INR 150,000.00 against Rosmarine Debit Note No. ROS/DEL490 dt. 15<sup>th</sup> December 2005 for Rs. 130,158.00. The cheque was en-cashed by RSPL on 21 January, 2006 as per CAL's Bank statement .
- To put further pressure on CAL Rosmarine made the payment to MacAndrew's towards Freight and Inland Haulage Charges and collected the MB/L. but refused to released the shipment to CAL. On approaching MacAndrew's in New Jersey on 3<sup>rd</sup> May' 2006, the Complainant's Managing Director MacAndrew's did not reveal that they have received the freight and Inland Haulage Charges, Rather misguided the complainant that MBL is yet to be surrendered by Rosmarine to MacAndrew's

**B. Non-delivery of shipment**

- CAL made the shipment against invoice No. EX/2005-2006 / 72 dated 22 June, 2005 to M/s D&W Rebuilders, USA (herein referred as D&W) through common carrier ITC and Rosmarine.
- The shipment is being held in warehouse at Baltimore by ITC on the grounds of outstanding payment settlement between CAL & Rosmarine/ ITC (Joint Venture).
- The shipment has not been released to D&W even after surrendering the Original HBL to ITC for release of the shipment and HBL does not even specify that MBL is required to be Surrendered / Presented for release of the shipment.



➤ Rosmarine has not sent the Master B/L of MacAndrews to ITC ever since the shipment arrived at Baltimore on 24 January 2006.

➤ The shipment is still held up at Baltimore, USA at the instructions of Rosmarine duly Custom Cleared by ITC.

- The shipment is incurring Detention and demurrage charges in Warehouse at Baltimore.



000003

**C. Misguidance**

CAL & D&W were misguided by the Joint Venture Common Carrier ITC & Rosmarine by indicating different Carrier names in the House Bill of Lading and Arrival Notice.

- Carrier mentioned in-house B/L C P KANHA VOY 5151.
- Arrival Notice/Remarks indicates it as APL ALEXANDRIT / 5152W,
- D&W was not aware of the name of the actual Carrier vessel till the Arrival Notice/Remarks dt. 3<sup>rd</sup> Feb 2006 was received at their end and was not sure about the motive behind this misleading information.

**D. Extortion**

Common Carriers are in league with each other and every action of their's test amounts to, "Virtual Extortion" of amounts not due to them and they are carrying the complainant's to Ransom just because they manipulated to collect MBL from MacAndrew's and even though House B/L does not specify the prentation / Surrender of MBL for the release of cargo to the Receiver.

The previous issues of payments were duly reconciled between CAL and Rosmarine, and the statement was even acknowledged by Rosmarione but still they held the complainant's to ransom.

**E. Efforts for settlement**



➤ CAL have been in constant touch with ITC and Rosmarine for release of the consignment to meet the urgent commitments of our customer, vide our letters dated 13 Feb 2006, 14 Feb 2006, 23 Feb 2006, 24 Feb 2006 & 25 Feb 2006, 9<sup>th</sup> March 2006 & 8<sup>th</sup> April 2006.

➤ D&W also requested ITC directly and through a legal notice dated 8<sup>th</sup> March 2006 issued by their legal Attorneys Miles & Stockbridge P.C., USA for release of the shipment and even offered to give Bank Guarantee vide Email dated 25<sup>th</sup> April' 2006 which was neither acknowledged nor replied.

We the Complainant's have taken all the steps and have exhausted all the channels to resolve the issue but the Defendant's has no interest of settling the same amicably. Hence you assistance is required to help us out of this stalemate.



000004

IV. NOT APPLICABLE, SINCE THE CLAIM IS NOT FOR OVERCHARGES.

V. Sections violated as per Shipping Act, 1984.

- ITC has violated the Section 10(b)(3) of the Shipping Act 1984 by retaliating and refusing CAL the delivery of shipment handled by them.
- As per section 10(d)(1) all common carriers and ocean transportation intermediary, or marine terminal operator has to establish, observe and enforce just and reasonable regulations and practices relating or connected with receiving, handling, sorting or delivering the property.
- ITC/ Rosmarine & MacAndrews have willfully and knowingly committed the above violations to harass and blackmail CAL and D&W by non-delivery of the shipment.

VI. Injury and damages

- All efforts so far made by CAL and D&W for release of this particular shipment have not yielded any positive result.
- CAL is losing its goodwill, business opportunities and loss of further orders from prospective customers.
- CAL, D&W have suffered a lot at the hands of ITC and hence plea to your highness for recovery of the damages as under;

Release of container to our Customer D&W.

Demurrage and Detention Charges Estimated – US\$ 40000.00

Damages towards loss of Business, Goodwill and Opportunities.

- VII. The undersigned authorizes the Settlement Officer to determine the above-stated claim pursuant to the informal procedure outlined in Subpart S (46 CFR 502.301 – 502.305) of the Commission's informal procedure for adjudication of small claims to discretionary Commission review. .



000005

5

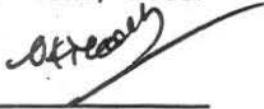
We enclose herewith the following relevant Annexure along with related documents and correspondence.

Annexure

- a) Details of parties
- b) Shipment Details
- c) Details of payments
- d) Efforts made by CAL
- e) Extortion
- f) Demand Draft No.00001101 dt.23.05.2006 for US\$ 67.00 towards Filing Fee.

I  
II  
III  
IV  
V

Date: 7<sup>th</sup> June, 2006.



Vijay Krishan Mehta.  
Vice Chairman & Managing Director.  
Clutch Auto LTD.  
12/4, Mathura Road, Faridabad  
India  
Tel: +91 129 2275246  
Fax: +91 129 2276039  
Email: vkm@clutchauto.com



(Signature of agent or attorney)

(Agent's or attorney's address)

Verification

State of HARYANA, Country of INDIA, ss: \_\_\_\_\_, being first duly sworn on oath deposes and says that he / she is V.C.M.D. - CLUTCH AUTO LTD

The claimant has read the foregoing and that the facts set forth without qualification are true and that the facts upon information received from others, affiant believes to be true.

Subscribed and sworn to before me, a notary public in and for the State of HARYANA, Country of INDIA, day of 10<sup>th</sup> JUNE, 2006 (Seal)

(Notary Public)

My Commission expires, \_\_\_\_\_

Deponent/Executant has Signed  
Through Impression of Signature  
Presence

ATTESTED AS IDENTIFIED

NOTARY  
FARIDABAD (Hc.)

000006

10 JUN 2006

## ANNEXURE I - PARTIES

- A. **SHIPPER :** (A CARGO OWNER, THE PERSON FOR WHOSE ACCOUNT THE OCEAN TRANSPORTATION IS PROVIDED AS PER SECTION 3 (21) OF SHIPPING ACT, 1984).

**CLUTCH AUTO LIMITED (CAL)**  
12/4, Mathura Road, Faridabad, INDIA.  
Tel +91 129 2275246 Fax +91 129 2276039  
Email: [vkm@clutchauto.com](mailto:vkm@clutchauto.com) [exports@clutchauto.com](mailto:exports@clutchauto.com)

- B. **RECEIVER IN USA:** (THE PERSON TO WHOM DELIVERY IS TO BE MADE AS PER SECTION 3 (18) OF SHIPPING ACT, 1984).

**D&W CLUTCH & BRAKE (D&W)**, 2601 Sisson Street, Baltimore, MD 21211, USA is a corporation registered as per US Laws  
Tel. +1 410 235 8829 Fax: 001 410 235 8862 Email: [kkeller@dwclutch.com](mailto:kkeller@dwclutch.com)  
Contact Person: Mr. Kevin Keller

- C. **FREIGHT FORWARDER / COMMON CARRIER/ NVOCC IN USA:**

**INTERNATIONAL TOUCH CONSOLIDATOR INC (ITC)**, Ocean Imports Dept., 147-148 182nd Street, 2nd Floor, Jamaica, NY 11413, USA.  
Tel. (718) 6560831, Fax: (708) 6560579, Email: [Raymond.Wu@itcny.com](mailto:Raymond.Wu@itcny.com)  
Contact Person: Mr. Raymond Wu  
**FMC Organisation No.014239**

In Joint Venture with

**FREIGHT FORWARDER / NVOCC / AGENT IN DELHI, INDIA:**

**ROSMARINE SHIPPING PRIVATE LIMITED (RSPL)**, B-57, II Floor, Kalkaji, New Delhi-110019, India  
Tel. +91 11 41716550, 41716551, Fax: +91 11 41716554,  
Email: [custcare@rosmarine.com](mailto:custcare@rosmarine.com), [rosmarine@rosmarine.com](mailto:rosmarine@rosmarine.com)  
Contact Person: Mr. Rajesh Bhatia, Managing Director,  
Mr. S. K. Gosain, Director

- D. **OCEAN COMMON CARRIER THRU WHICH OUR CONSIGNMENT SENT BY NVOCC/ FORWARDER AGENT FROM INDIA:**

**MaCANDREWS & COMPANY LIMITED (MCL)**, 40 Cragwood Road, South Plainfield NJ 07080, USA.  
Email: [msullivan@macandrews.com](mailto:msullivan@macandrews.com)  
Contact Person: Ms. Mary Sullivan, Owner Representative.

AGENT IN INDIA for MCL:

**HITOS LINER AGENCY PVT LIMITED (HLA)**, 415, ANSAL TOWER, 38 NEHRU PLACE, NEW DELHI 110 019, INDIA.  
Tel +91 11 55601191/92,  
FAX: +91 11 55606690



000007

Exhibit No. 1 to Subpart S [502.304(a)]Small Claim Form for Informal Adjudication and Information Checklist

Federal Maritime Commission, Washington, D.C.

Informal docket No. ....18856.....

**D&W CLUTCH & BRAKE (formerly D&W Rebuilders),****2601 Sisson Street, Baltimore, MD 21211, USA**

Tel. (410) 235 8829, Fax (410) 235 8862, Email: kkeller@dwclutch.com

Contact Person : Mr. Kevin Keller, President

**(CLAIMANT)****VS.**

1. **INTERNATIONAL TOUCH CONSOLIDATOR INC., USA. (RESPONDENT - I)**  
Ocean Imports Dept., 147-148 182<sup>nd</sup> Street, 2<sup>nd</sup> Floor, Jamaica, NY 11413, USA  
Tel. (718) 656 0831, Fax (708) 656 0579, Email: Raymond.Wu@itcny.com  
Contact Person: Mr. Raymond Wu  
In Joint Venture with [as per Section 10(e) of Shipping Act 1984]

**And**

2. **MaCANDREW & COMPANY LIMITED, USA (Respondent - II)**  
40 Cragwood Road, South Plainfield, NJ 07080, USA  
Tel. (908) 412 2175, (908) 791 6800, Mobile: (908) 432 6547  
Email: msullivan@macandrews.net  
Contact Person: Ms. Mary C. Sullivan, Owner's Representative  
**(RESPONDENTS)**

- I. **The Claimant, D&W Clutch & Brake** (herein referred as D&W) is Company incorporated in USA since .....

Represented by : Mr. Kevin Keller, President (....)  
Mr. Brian Engleman, (.....)

Nature of business : Distribution of Clutch Assemblies, Clutch Components, Clutch Kits and Brake systems for Commercial Vehicles, Automotive Applications, Agricultural Tractors & Off Highway Vehicles.

Principal place of Business : 2601 Sisson Street, Baltimore, MD 21211, USA.

Establishments at : .....

000008

## II The Respondents

- a) **INTERNATIONAL TOUCH CONSOLIDATOR INC** (herein referred as ITC) is a freight forwarder / common carrier incorporated in Jamaica, NY, USA. Represented by Mr. Raymond Wu.  
**FMC Organization No. 014239.**

In Joint Venture with [as per Section 10(e) of Shipping Act 1984]

### Indian Agent:

**ROSMARINE SHIPPING PRIVATE LIMITED, B-57, II Floor, Kalkaji, New Delhi – 110019, India.**

Tel. (+91) 11 4171 6550, 4171 6551, Fax: (+91) 11 4171 6554

Email: [custcare@eosmarine.com](mailto:custcare@eosmarine.com), [rosmarine@rosmarine.com](mailto:rosmarine@rosmarine.com)

Contact Persons : Mr. Rajesh Bhatia, Managing Director

Mr. S. K. Gosain, Director

**And**

- b) **MaCANDREWS & COMPANY LIMITED** (a UK based Company, established in 1771), Cragwood Road, South Plainfield, NJ 0780, USA (herein referred as **MacAndrews**), USA, an Ocean Common Carrier.  
Represented by : Ms. Mary C Sullivan, Owner Representative.  
Email: [msullivan@macandrews.com](mailto:msullivan@macandrews.com)

## III. The matters that gave rise to the claim are:

### **A. Non-delivery of shipment**

- Shipment to D&W Rebuilders, USA (herein referred as D&W) against invoice No. EX/2005-2006 / 72 dated 22 June, 2005 of Clutch Auto Limited, Faridabad India (herein referred to as **CAL**) was sent through common carrier ITC and Rosmarine.
- The shipment is being held in warehouse at Baltimore by ITC on the grounds that have no relevance at all in this case.
- The shipment has not been released to D&W even after surrendering the Original HBL to ITC for release of the shipment and HBL does not even specify that MBL is required to be Surrendered / Presented for release of the shipment.
- Rosmarine has not sent the Master B/L of MacAndrews to ITC ever since the shipment arrived at Baltimore on 24 January 2006.
- The shipment is still held up at Baltimore, USA at the instructions of Rosmarine, duly Custom Cleared by ITC.

**The shipment is incurring Detention and demurrage charges in Warehouse at Baltimore.**

000009

**B. Malafide intention**

- B/L No. RSPLDELBAL005151 dt. 14 December, 2005 issued by Rosmarine as agents on behalf of their Principals ITC duly mentioning "freight prepaid at Delhi subject to realization" & "FREIGHT PREPAID, FREIGHT AS ARRANGED, IHC PREPAID"
- Payment towards this shipment was paid by CAL vide cheque no. 954571 dt. 16<sup>th</sup> January 2006 for INR 150,000.00 against Rosmarine Debit Note No. ROS/DEL490 dt. 15<sup>th</sup> December 2005 for Rs. 130,158.00. The cheque was en-cashed by Rosmarine and there is no payment due as far as this consignment is concerned.

**C. Misguidance**

**D&W & CAL** were misguided by the Joint Venture Common Carrier **ITC & Rosmarine** by indicating different Carrier names in the House Bill of Lading and Arrival Notice.

- Carrier mentioned in-house B/L **C P KANHA VOY 5151**.
- Arrival Notice/Remarks indicates it as **APL ALEXANDRIT / 5152W**,
- D&W was not aware of the name of the actual Carrier vessel till the Arrival Notice/Remarks dt. 3<sup>rd</sup> Feb 2006 was received at their end and was not sure about the motive behind this misleading information.

**D. Extortion**

Common Carriers are in league with each other and every action of their's test amounts to, "Virtual Extortion" of amounts not due to them and they are carrying the complainant's to Ransom just because they manipulated to collect MBL from MacAndrew's and even though House B/L does not specify the presentation / Surrender of MBL for the release of cargo to the Receiver.

Understandably, there is no issue pending either from D&W or CAL and ITC is holding us at ransom on extraneous reasons with malafide intentions.

**E. Efforts for settlement**

- We have been in constant touch with ITC for release of the consignment to meet the urgent commitments of our customers.
- We also requested ITC directly and through a legal notice dated 8<sup>th</sup> March 2006 issued by our legal Attorneys Miles & Stockbridge P.C., USA for release of the shipment and even offered to give a Bank Guarantee against release of the consignment, vide Email dated 25<sup>th</sup> April' 2006 which was neither acknowledged nor replied.

We the Claimant have taken all the steps and have exhausted all the channels to resolve the issue but the Defendant's has no interest of settling the same amicably. Hence your assistance is required to help us out of this stalemate. 000010

IV. NOT APPLICABLE, SINCE THE CLAIM IS NOT FOR OVERCHARGES.

V. Sections violated as per US Shipping Act, 1984.

- ITC has violated the Section 10(b)(3) of the US Shipping Act 1984 by retaliating and refusing us delivery of shipment handled by them.
- As per section 10(d)(1) all common carriers and ocean transportation intermediary or marine terminal operator has to establish, observe and enforce just and reasonable regulations and practices relating or connected with receiving, handling, sorting or delivering the property.
- ITC/ MacAndrews have willfully and knowingly committed the above violations to harass and blackmail us by non-delivery of the shipment.

VI. Injury and damages

- Business between D&W and CAL is of an ongoing nature. In this particular case demurrage charges are mounting day by day ever since we have surrendered the Bill of Lading on January 13, 2006. Arrival Notice was faxed to us on February 3, 2006 and the shipment is on hold till the last day of intimation and after that all our efforts to get the consignment retrieved have been frustrated because of the ulterior motives of both ITC and MacAndrews.
- The Shipment value is US\$ 36,186.00. The last assessed value of the shipment is approximately US\$ 10,000.00.
- Since we have no access to the shipment, we are not aware whether it is abandoned nor are we aware of the whereabouts of the shipment.
- No correspondence not even legal notice have been able to work on release of this shipment because they are intentionally holding back the shipment without any plausible reason.
- We are losing goodwill, business opportunities and loss of further orders from prospective customers.
- We as well as CAL have suffered a lot at the hands of ITC and hence plea to your highness for recovery of the damages as under:
  - (i) Release of container to us.
  - (ii) Demurrage and Detention Charges Estimated – US\$ 40000.00
  - (iii) Damages towards loss of Business, Goodwill and Opportunities.

VII. The undersigned authorizes the Settlement Officer to determine the above-stated claim pursuant to the informal procedure outlined in Subpart S (46 CFR 502.301 – 502.305) of the Commission's informal procedure for adjudication of small claims to discretionary Commission review.

000011

We enclose herewith the following relevant Annexures along with related documents and correspondence.

- |                                   |                                    |
|-----------------------------------|------------------------------------|
| a) Shipment Details               | I                                  |
| b) Details of payments            | II                                 |
| c) Efforts made by D&W and CAL    | III                                |
| d) Demand Draft No. .... dt. .... | for US\$ 67.00 towards Filing Fee. |

Date: 8-25-, 2006.



Kevin Keller

President ( )

D&W CLUTCH & BRAKE

2601 Sisson Street, Baltimore, MD 21211, USA

Tel. (410) 235 8829, Fax (410) 235 8862, Email: kkeller@dwclutch.com

(Signature of agent or attorney)

(Agent's or attorney's address)

#### Verification

State of Maryland, Country of Baltimore, ss: ....., being first duly sworn on oath deposes and says that he / she is .....

The claimant has read the foregoing and that the facts set forth without qualification are true and that the facts upon information received from others, affiant believes to be true.

Subscribed and sworn to before me, a notary public in and for the State of Maryland  
Country of Baltimore, day of 25 Aug 2006 (Seal)

  
(Notary Public)

My Commission expires, 10/1/09

000012

## **ANNEXURE I – SHIPMENT DETAILS**

- A. House B/L No. RSPLDELBAL005151 dt. 14 December, 2005 issued by **RSPL** as agents on behalf of their Principals **ITC**, a Common Carrier.
- B. B/L No. AMS HB/L No. MCAWDELORF00157A issued by M/s. **RSPL**., Consignee shipping agent being **ITC**, Ocean Imports Deptt. 147-48, 182nd Street, 2nd Floor, Jamaica, NY 11413, USA.
- D. Ocean B/L # MCAWDELORF00157 issued by **HLA**, 415 Ansal Tower, 38 Nehru Place, New Delhi-11019, India as Agent on behalf of **MCL**.
- E. Container No. IPXU-3304500/20'
- F. Vessel / Voyage: APL ALEXANDRIT / 5152W
- G. Date of Sailing out from Delhi: 14 December 2005
- H. Date of Sailing out from Mumbai: 27 December, 2005
- I. Port of Discharge: Norfolk, USA: ETA – 16 January, 2006
- J. Final Destination: Baltimore - ETA January 24, 2006
- K. Actual date of Arrival at Destination (Baltimore): January 24, 2006

## **ANNEXURE II – PAYMENTS**

- a. The Defendant's Debit Note No. ROS/DEL490 dt. 15<sup>th</sup> December 2005 for **INR130,158.00.**
- b. The Complainant's **Cheque No. 954571** dt. 16<sup>th</sup> January 2006 for **INR 150,000.00,**
- c. Bank statement of the Complainant's highlighting relevant portion of cheque **en-cashed by the Defendant's on 21<sup>st</sup> January 2006,** is attached and there exists no liability on this consignment.
- d. Reconciliation Statement of The Complainant and the Defendant's dated 10/27/2005 duly **acknowledged** by the Defendant's subject to verification, **but no verification statement / receipts / bills provided by the Defendant's.**

### **ANNEXURE III – EFFORTS MADE BY THE DEFENDANT'S**

- A. The Complainant** has been in constant touch with the Defendant's for release of the consignment to meet the urgent commitments of our customer, vide letters dated **13 Feb 2006, 14 Feb 2006, 23 Feb 2006, 24 Feb 2006 & 25 Feb 2006, 9<sup>th</sup> March 2006 & 8<sup>th</sup> April 2006.**
- B. The Defendant's** also requested the Complainant's directly and through a legal notice dt. **8th March 2006** issued by their legal Attorneys **Miles & Stockbridge P.C.**, release of the shipment.
- C. The Complainant's** even offered to give **Bank Guarantee vide Email dated 25 April, 2006** for release of the consignment but no response given by the Defendant's for release of the consignment.

Exhibit No. 1 to Subpart S (§ 502.304(a)) --  
Small Claim Form for Informal Adjudication  
and Information Checklist

Federal Maritime Commission, Washington, D. C.

Informal Docket No. \_\_\_\_\_

\_\_\_\_\_  
(Claimant)

vs

\_\_\_\_\_  
(Respondent)

I. The claimant is [state in this paragraph whether claimant is an association, corporation, firm or partnership, and if a firm or partnership, the names of the individuals composing the same. State the nature and principal place of business.]

II. The respondent named above is [state in this paragraph whether respondent is an association, corporation, firm or partnership, and if a firm or partnership, the names of the individuals composing the same. State the nature and principal place of business.]

III. That [state in this and subsequent paragraphs to be lettered A, B, etc., the matters that gave rise to the claim. Name specifically each rate, charge, classification, regulation or practice which is challenged. Refer to tariffs, tariff items or rules, or agreement numbers, if known. If claim is based on the fact that a firm is a common carrier, state where it is engaged in transportation by water and which statute(s) it is subject to under the jurisdiction of the Federal Maritime Commission]

IV. If claim is for overcharges, state commodity, weight and cube, origin, destination, bill of lading description, bill of lading number and date, rate and/or charges assessed, date of delivery, date of payment, by whom paid, rate or charge claimed to be correct and amount claimed as overcharges. [Specify tariff item for rate or charge claimed to be proper]

V. State section of statute claimed to have been violated. (Not required if claim is for overcharges).

VI. State how claimant was injured and amount of damages requested.

VII. The undersigned authorizes the Settlement Officer to determine the above-stated claim pursuant to the informal procedure outlined in Subpart S (46 CFR 502.301 - 502.305) of the Commission's informal procedure for adjudication of small claims subject to discretionary Commission review.

Attach memorandum or brief in support of claim. Also attach bill of lading, copies of correspondence or other documents in support of claim.

8-25-06

Date)

*Kenneth K. K...*  
Claimant's signature)

2601 SUSSEX ST BALTIMORE, MD 21211  
Claimant's address)

\_\_\_\_\_  
(Signature of agent or attorney)

\_\_\_\_\_  
(Agent's or attorney's address)

000016



Before the Federal Maritime Commission,  
Washington, D.C.  
Informal Docket no. 1880 {F}

|                                                      |    |                |
|------------------------------------------------------|----|----------------|
| Clutch Auto Ltd. India, Faridabad, India             | .. | Claimant       |
| Versus                                               |    |                |
| 1. International Touch Consolidator Inc., USA        | .. | Respondent - I |
| Rosmarine Shipping Private Limited, New Delhi, India |    |                |
| 3. MaCandrews & Company Limited, USA                 | .. | Respondent -II |

**REPLY ON BEHALF OF ROSMARINE SHIPPING  
PRIVATE LIMITED, NEW DELHI, INDIA**

Most respectfully sheweth:

I&II. No comments needed

II A. **DUES PAYABLE BY CAL TO ROSMARINE**

- a) CLUTCH AUTO LTD { CAL } to pay to ROSMARINE INR 55,88163 {USD 129,957.27 }
- b) Reconciliation between parties held on 27<sup>th</sup> October, 2005 wherein it is admitted by CAL is Rs.6269926 {USD 145,812.23}
- c) CAL makes superfluous deductions based on excess charges and short deliveries to the extent of INR23,356,76 (USD 54,318.04 )
- d) CAL has no supporting documents to show above amount is deductible by them.
- e) Reconciliation account is Annexure IA. Statement of account and List of Datewise Detail of Cheques Bounced {83 times } during Year 2003 to Year 2006 . for the reasons Insufficient Funds / Exceeds Arrangements. Statement maintained by ROSMARINE of CAL is Annexure I B.
- f) AS PER Annexure IA, CAL is to pay ROSMARNE INR4,59,512.00
- g) If that is the position why an amount of INR 3,00,000/ was paid after 15<sup>th</sup> December, 2005. Annexure I C

000018

III. A. Malafide intention

The accusation of malafide intent through the statement "Quote .....Unquote" is totally denied. In fact, the complainants efforts to collect the MB/L and consignment without payment of dues clearly is in gross violation of the contract terms and reflects malafide intentions of the complainant.

The complainants contention that the cheque(s) dated 16<sup>th</sup> Janaury 2006 was against amount due for freight is totally false, as evidenced by the fact that there was no letter to the effect that the cheque(s) issued was towards the freight payable against our legitimate invoices/debit notes. This is further borne out by the fact that the debit note against the said freight charges was for an amount of Rs, 131,358.00/- only raised through our debit note dated 15.12.2005 annexed and marked as Annexure II A and B/L No.RSPLDELBAL005151 dated 14 December,2005 annexed and marked as Annexure-II B.

The malafide intentions of M/s CAL is very evident from the fact that not only one but two cheques were issued of Rs. 150,000/- vide Cheque No 954571 and for Rs 2,00,000.00 Cheque No 954572 respectively, we brought to the notice of Cal of bouncing of both the Cheques Vide Letter dated January 20,2006 annexed as Annexure II C.

Further as per the terms and conditions the respondents took into custody the shipment after Freight and Inland Haulage Charges were paid to M/s MacAndrews and since the payment towards the charges for this shipment was not made by Clutch Auto to the answering respondents the release of shipment has been legitimately held back, as the fact remains is that the amount freight was not paid and was not realized, as stated above.

Here we would like to highlight that when we wrote a letter to CAL on October 24<sup>th</sup> 2005 annexed as Annexure II D about their regular bouncing of cheques and asking for Full & final Settlement of Rosmarine Long over due amount, we were asked by email to report to CAL office with all the dcuments at their factory, their email message as Annexed II E. To our shock, instead of paying our legitimate

000019

dues , we were forced upon to sign a reconciliation account statement prepared and made by CAL , as Annexed I A .CAL raised superfluous invoices of excess charges and short deliveries of the shipments done in the month of December 2004 and for the month feb/ March 2005 .It will be appropriate to mention that all these shipments terms were CIF { Cost Insurance Freight } and consigned to their own Company ie CAL INC , Our detailed reply on short deliveries was sent on the same day , Annexed as II F .

**Non-Delivery of shipment**

The accusation of malafide through the Non-Delivery of shipment is totally denied .As per the terms and conditions the Master B/L of the Carrier is to be sent only after receipt of all due payments. Consequently the claim of the complainant that the master B/L was held back due to malafide intention of the respondent is completely baseless and false.

Various communications in form of Letters were sent thru email / Fax and post , informing that we have exercised our Lien on said shipment and same shall not be released till the amount due to us has been finally paid by you , Copies of few letters Annexed as III A , III B ,III C and III D are enclosed for your ready reference .

**B. Misguidance**

The accusation of malafide and misguidance is totally denied.

There was no alleged malafide or misguidance by the respondent by way giving carrier names which were different is evidenced by the fact that an explanation to this effect was promptly given by the respondent to the complainant thru letter dated February 23, 2006 annexed and marked as Annexure III C. Moreover Honourable commission will appreciate that the said Hb/I was not endorsed as SHIPPED ON BOARD . Thus the claim Of CAL of misguidance is baseless.

C. Extortion

The accusation of extortion is totally denied.

The allegation of extortion or ransom is a figment of imagination of the complainant. The facts of the matter being as below.

Discussions were held on October 27, 2005 for reconciliation but there was no agreement reached on outstanding dues to be paid by complainant to the answering respondent herein. The statement dated 27.10.2005 was unilaterally prepared by the complainant and it was clearly stated by the answering respondents on the said statement that it could be acceptable "subject to above amount to be checked and verified by our side and our confirmation awaited." Amply illustrating the adherence of the respondents to the terms and conditions with no extortion involved. Copy of this statement is annexed at Annexure I A.

In view of the facts and circumstances explained, the question of any extortion or ransom does not arise.

D. Efforts for settlement

It is completely wrong and denied that the Complainant took any steps to resolve the issue of payment of outstanding dues of the answering respondent. On the contrary it was Rosmarine who initiated the dialogue by writing and sending communications in form of emails as Annexed IV, { 6 Pages },. But regret to state that there was no response or initiative from the complainant.

This is clear from the documents annexed herewith. Because of non receipt of outstanding dues against the subject consignment and B/L as also other previous dues, The answering respondents issued notice dated February 10, 2006 to the CAL clearly stating that "we have exercised our lien on the said

shipment and the same shall not be released till the amount due to us has been finally paid in full by CAL..” Which is totally within the rights of the respondent and in line with the terms and conditions

A copy of this notice dated February 10, 2006 is annexed herewith and marked as Annexure III D. No reply was given by CAL to this notice. A letter dated March 9, 2006 was also issued to D&W indicating the reasons for holding the shipment. Copy annexed as Annexure III E. Another notice was issued to CAL vide our letter dated March 10 2006. However, no reply received from CAL. A legal notice dated April 24, 2006 to CAL for payment of the outstanding dues. Copy annexed as Annexure III F. In their reply, CAL made completely false and baseless statement that the answering respondents had confirmed that “no pending issue remains and settlement in reconciliation dated October 27, 2005 is accepted”. This is completely baseless and misleading statement since the answering respondents as enumerated in Article “D” above made their position very clear. The answering respondents are within their rights to withhold the shipment, based on the terms and conditions stipulated sub-para 3 of Clause 23 of “Bill of Lading – Terms and Conditions” on the back of the subject B/L, which are quoted below for convenience of ready reference :-

“23.....The carrier shall have a lien on the goods and documents relating thereto which shall survive delivery for all freight charges and damages of any kind whatsoever and for the costs of recovering same including expenses incurred in preserving this lien and may enforce this lien by public or private sale and without notice. ....”

These terms were duly acknowledged and accepted by the shipper CAL by duly signing these terms and conditions and also putting their rubber stamp, copy enclosed marked as Annexure V.

000022

Original of the above said terms and conditions and the signature and stamp are available in the office of ITC . These can be verified by this Hon'ble Commission .

Based on the long outstanding dues from the complainant , the respondent exercised their rights to file a petition for winding up of CAL. The details of this matter are given below :-

**In the High Court of Delhi at New Delhi ( India )**

**Company Petition no. 216 of 2006**

**TITLE**

**M/s. Rosmarine Shipping (P) Ltd.**

**.. Petitioner**

**Versus**

**M/s. Clutch Auto Limited**

**Filed on August 03,2006.**

**Status: still pending before the Hon'ble High Court of Delhi at  
New Delhi (India)**

Copy of the above said petition is annexed and marked as Annexure VI .

It was only after the filing the above said petition that D&W filed complaint before Federal Maritime Commission, Washington, D.C. on August 25, 2006. in order to circumvent the respondents .

The complainant CAL has made no efforts to the respondents legal claim of outstanding amount and settle this matter. They are only trying to mislead and misguide this Hon'ble Commission

V.

Sections violated as per US Shipping Act, 1984

It is denied that the respondent has violated sections as per the US shipping Act 1984 and have acted fully within the framework of the law.

CAL claim of harassment and blackmailing is totally false and baseless. As per the Annexure I A { Reconciliation signed on October 27, 2005 } as prepared by CAL India, 17 containers were on high seas with value of more than USD 500,000.00 on our services which we delivered without any hassles, this would prove our stand that we are not into such activities as claimed by CAL.

Here we would like to bring to your kind notice that without settling our dues CAL shifted their business to other Freight Forwarders, since CAL did not pay the freight to the service providers, all 13 containers were not released for non payment of ocean freight, CAL had to pay thousands of dollars as demurrage and detention on containers, List of Containers as enclosed Annexure VIIA. The Indian forwarder M/S Universal Cargo has also filed a winding up petition against CAL for Rs. 33,77,041.00 Equivalent { USD 78,535.80 }, Notice copy enclosed as Annexure VII B

The relationship between the shipper CAL and the forwarding agent – Rosmarine Shipping Private Limited is governed by the B/L and the terms and conditions agreed therein, which is annexed herewith and the relevant extracts of which have been quoted above for convenience of ready reference.

We would request Honorable Commission to investigate and ascertain the true facts that CAL have also been indulging in illegal activities

000024

including fraud and forgery of documents. In the deal between M/s. Daikin Inc , a well established company in USA and CAL, USA, the complainant herein has given a misdeclaration to the Indian customs authorities and under invoicing there of to evade customs duty involving thousands of dollars. The answering respondent herein has been writing to Daikin USA ,Mr Kenneth Shunta ,Finance Controller to confirm the contract deal between Daikin USA and CAL, USA, but no response has been received. In this regard, letter no. CAL:IMP:1231 dated September 28, 2005 addressed to the Commissioner of Customs, New Delhi ( India ), copy of certificate dated September 26, 2005 given by Mr. Kenneth J Shunta on behalf of Daikin Clutch Corporation and the copy of the Press Release dated December 9<sup>th</sup> 2005 issued that the name of Daikin Clutch Corporation has been changed to EXEDY Globalparts Corporation, which was downloaded from their website and which contains the signatures of Mr. Kenneth J. Shunta, are annexed and marked as Annexure VIII A , VIII B, VIII C & VIII D Any layman can make out that the signatures of Mr. Kenneth J Shunta on certificate dated September 28, 2005 are forged, . This can be verified from M/s. Daikin as also checked by handwriting experts.

Above statement can also be verified By Packing Company, M/s Great Lakes Exports , which was engaged by M/S CAL and packing/ handling costs of USD 28, 800.00 were remitted thru Wire transfer by CAL India in the month of April , 2005, Annexure IX A & B .

#### VI.

#### Injury and damages

The claims for injury and damage by the complainant is denied. The answering respondents are in no way responsible for the alleged injury and damages and have acted within their rights as per the terms and conditions of the contract with CAL. The dues of the answering

000025

respondent against CAL, as stated in their petition filed before the Hon'ble High Court of Delhi at New Delhi are INR 5,588,163.00 .

VII. It is the respondents contention from the facts and circumstances stated that the complaint by the complainant CAL is baseless and malafide. It is most respectfully prayed that they be directed to make payment of the legitimate dues of the answering respondents, as stated, along with interest besides compensation and damages. They are also liable to make payment towards the cost of these proceedings before the Federal Maritime Commission and the Court of Hon'ble Administrative Law Judge, Clay G. Guthridge.



RAJESH BHATIA  
MANAGING DIRECTOR  
ROSMARINE SHIPPING PRIVATE LIMITED  
B-57, II Floor, Kalkaji  
New Dehi 110019 (India)

VERIFICATION

Verified at New Delhi on April 27, 2007. The statements made above are true based on personal knowledge and the documents on record and nothing material has been concealed therefrom. The documents annexed with this reply are true copies of their originals.



DEPONENT RAJESH BHATIA

# ROSMARINE SHIPPING PVT. LTD.

# ANNEXURE IB

Statement Of Account (Sub Ledger) Starting From 01/04/2005 To 31/03/2006

Sub Ledger No. :- 1 Description :- SUNDRY DEBTORS

Sub Ledger Code From :- C004 To :- C004

| V. Date        | V. No                  | V. Type | Narration                                                                               | Debit             | Credit    | Balance       |
|----------------|------------------------|---------|-----------------------------------------------------------------------------------------|-------------------|-----------|---------------|
| Code : C004    | Name : CLUTCH AUTO LTD |         |                                                                                         |                   |           |               |
|                |                        |         |                                                                                         | Opening Balance : |           | 3983475.00 Dr |
| 07/04/2005 1   | B 2                    |         | CHQ. NO. 957488<br>CHQ REC                                                              |                   | 223572.00 | 3759903.00 Dr |
| 08/04/2005 6   | J- 2                   |         | B/L NO. RSPL/DEL/3013 DESTINATION:BANDAR ABBAS<br>CBM:0; Exch. Rate:0                   | 68675.00          |           | 3828578.00 Dr |
| 17/04/2005 2   | B 7                    |         | CHQ. NO. 957484<br>BY CH.NO.957484 FROM CLUTCH RE-DEP.                                  |                   | 222686.00 | 3605892.00 Dr |
| 25/04/2005 1   | B 7                    |         | CHQ. NO. 957490<br>CHQ RET                                                              | 222686.00         |           | 3828578.00 Dr |
| 27/04/2005 1   | B 2                    |         | CHQ. NO. 957488<br>CHQ RET                                                              | 223572.00         |           | 4052150.00 Dr |
| 04/05/2005 2   | B 7                    |         | CHQ. NO. 957488<br>CHQ REPRESENT                                                        |                   | 223572.00 | 3828578.00 Dr |
| 04/05/2005 7   | B 7                    |         | BEING CH.957489 RTD DEPOSITED ON 31-3-05                                                | 222686.00         |           | 4051264.00 Dr |
| 06/05/2005 81  | J- 2                   |         | B/L NO. RSPL/DI:L/5018 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0               | 157970.00         |           | 4209234.00 Dr |
| 06/05/2005 82  | J- 2                   |         | B/L NO. RSPL/DEL/5019 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0                | 157970.00         |           | 4367204.00 Dr |
| 06/05/2005 83  | J- 2                   |         | B/L NO. RSPL/DEL/5020 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0                | 157970.00         |           | 4525174.00 Dr |
| 06/05/2005 84  | J- 2                   |         | B/L NO. RSPL/DEL/5021 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0                | 157970.00         |           | 4683144.00 Dr |
| 13/05/2005 2   | B 7                    |         | DD RECEIVED AGAINST CHEQUE RETURN                                                       |                   | 222686.00 | 4460458.00 Dr |
| 18/05/2005 3   | B 7                    |         | CHQ. NO. 694664<br>D.D.RECEIVED FROM CLUTCH AUTO IN LIEU OF<br>CH.BOUNS                 |                   | 200000.00 | 4260458.00 Dr |
| 19/05/2005 112 | J- 2                   |         | B/L NO. RSPL/DEL/5026 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0                | 157674.00         |           | 4418132.00 Dr |
| 19/05/2005 113 | J- 2                   |         | B/L NO. RSPL/DEL/5027 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0                | 157674.00         |           | 4575806.00 Dr |
| 23/05/2005 114 | J- 2                   |         | B/L NO. RSPL/DEL/5030 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0                | 157674.00         |           | 4733480.00 Dr |
| 24/05/2005 9   | B 7                    |         | CHQ. NO. 694720<br>DD RECEIVED AGST.CH.BOUNS DD.NO.694720                               |                   | 200000.00 | 4533480.00 Dr |
| 26/05/2005 6   | B 7                    |         | CHQ. NO. 694744<br>DDD.RECEIVED.AGST.CH BOUNS DD.NO.694744                              |                   | 200000.00 | 4333480.00 Dr |
| 28/05/2005 7   | B 7                    |         | CHQ. NO. 694767<br>CH NO.694767                                                         |                   | 200000.00 | 4133480.00 Dr |
| 30/05/2005 115 | J- 2                   |         | B/L NO. RSPL/DEL/5031 DESTINATION:ST. LOUIS(U.S.A.)<br>CBM:0; Exch. Rate:0              | 173250.00         |           | 4306730.00 Dr |
| 30/05/2005 116 | J- 2                   |         | B/L NO. RSPL/DEL/5033 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0                | 173250.00         |           | 4479980.00 Dr |
| 01/06/2005 125 | J- 2                   |         | B/L NO. RSPL/DEL/3028 DESTINATION:BANDAR ABBAS<br>PERSIAN GULF/IRAN CBM:0; Exch. Rate:0 | 68778.00          |           | 4548750.00 Dr |

000027

**ROSMARINE SHIPPING PVT. LTD.**

Statement Of Account (Sub Ledger) Starting From 01/04/2005 To 31/03/2006

Sub Ledger No. :- 1 Description :- SUNDRY DEBTORS

Sub Ledger Code From :- C004 To :- C004

| V. Date    | V. No | V. Type | Narration                                                                   | Debit     | Credit    | Balance      |
|------------|-------|---------|-----------------------------------------------------------------------------|-----------|-----------|--------------|
| 03/06/2005 | 1     | B 7     | CHQ. NO. 694809<br>DD.RECEIVED AGST.CON..... DD NO.694809                   |           | 625000.00 | 3923750.00Dr |
| 07/06/2005 | 36    | J- 3    | As Per Blank Bill No. 36 RSPL/DEL/BAN/3028 BANDAR<br>ABBAS                  | 13209.00  |           | 3936959.00Dr |
| 09/06/2005 | 145   | J- 2    | B/L NO. RSPL/DEL/5032 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0    | 173052.00 |           | 4110011.00Dr |
| 10/06/2005 | 149   | J- 2    | B/L NO. RSPL/DEL/5041 DESTINATION:MIAMI (U.S.A.)<br>CBM:0; Exch. Rate:0     | 148299.00 |           | 4258310.00Dr |
| 16/06/2005 | 161   | J- 2    | B/L NO. RSPL/DEL/5043 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0    | 173052.00 |           | 4431362.00Dr |
| 16/06/2005 | 162   | J- 2    | B/L NO. RSPL/DEL/5040 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0    | 173052.00 |           | 4604414.00Dr |
| 01/07/2005 | 3     | B 7     | CHQ. NO. 154991<br>CH.RECD.AGST.CH.BOUNS DD NO.154991                       |           | 400000.00 | 4204414.00Dr |
| 01/07/2005 | 202   | J- 2    | B/L NO. RSPL/DEL/5052 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0    | 138485.00 |           | 4342899.00Dr |
| 01/07/2005 | 203   | J- 2    | B/L NO. RSPL/DEL/5050 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0    | 172887.00 |           | 4515786.00Dr |
| 06/07/2005 | 216   | J- 2    | B/L NO. RSPL/DEL/5057 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0    | 188424.00 |           | 4704210.00Dr |
| 08/07/2005 | 1     | B 5     | DD REC                                                                      |           | 200000.00 | 4504210.00Dr |
| 09/07/2005 | 2     | B 7     | CHQ. NO. 155152<br>DD REC                                                   |           | 200000.00 | 4304210.00Dr |
| 09/07/2005 | 217   | J- 2    | B/L NO. RSPL/DEL/5062 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0    | 188424.00 |           | 4492634.00Dr |
| 20/07/2005 | 242   | J- 2    | B/L NO. RSPL/DEL/5063 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0    | 188278.00 |           | 4680912.00Dr |
| 20/07/2005 | 243   | J- 2    | B/L NO. RSPL/DEL/5064 DESTINATION:CHICAGO,IL<br>CBM:0; Exch. Rate:0         | 188278.00 |           | 4869190.00Dr |
| 20/07/2005 | 244   | J- 2    | B/L NO. RSPL/DEL/5065 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0    | 188278.00 |           | 5057468.00Dr |
| 26/07/2005 | 1     | B 7     | CHQ. NO. 282898<br>DD RECEIVED ON A/C                                       |           | 200000.00 | 4857468.00Dr |
| 29/07/2005 | 261   | J- 2    | B/L NO. RSPL/DEL/5067 DESTINATION:BALTIMORE (U.S.A.)<br>CBM:0; Exch. Rate:0 | 138384.00 |           | 4995852.00Dr |
| 19/08/2005 | 293   | J- 2    | B/L NO. RSPL/DEL/5072 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0    | 194965.00 |           | 5190817.00Dr |
| 26/08/2005 | 313   | J- 2    | B/L NO. RSPL/DEL/5086 DESTINATION:BALTIMORE (U.S.A.)<br>CBM:0; Exch. Rate:0 | 142819.00 |           | 5333636.00Dr |
| 29/08/2005 | 1     | B 7     | CHQ. NO. 695663<br>DD RECD. ON ACCOUNT                                      |           | 200000.00 | 5133636.00Dr |

000028

# ROSMARINE SHIPPING PVT. LTD.

Statement Of Account (Sub Ledger) Starting From 01/04/2005 To 31/03/2006

Sub Ledger No. :- 1 Description :- SUNDRY DEBTORS

Sub Ledger Code From :- C004 To :- C004

| V. Date    | V. No | V. Type | Narration                                                                         | Debit     | Credit    | Balance       |
|------------|-------|---------|-----------------------------------------------------------------------------------|-----------|-----------|---------------|
| 01/09/2005 | 323   | J- 2    | B/L NO. RSPL/DEL/5083 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0          | 194965.00 |           | 5328601.00 Dr |
| 01/09/2005 | 324   | J- 2    | B/L NO. RSPL/DEL/5089 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0          | 194965.00 |           | 5523566.00 Dr |
| 05/09/2005 | 4     | B 7     | CHQ. NO. 695725<br>DD.RECD.ON ACCOUNT                                             |           | 400000.00 | 5123566.00 Dr |
| 05/09/2005 | 331   | J- 2    | B/L NO. RSPL/DEL/5094 DESTINATION:NEW<br>ORLEANCE(USA) CBM:0; Exch. Rate:0        | 142969.00 |           | 5266535.00 Dr |
| 09/09/2005 | 353   | J- 2    | B/L NO. RSPL/DEL/5096 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0          | 198915.00 |           | 5465450.00 Dr |
| 09/09/2005 | 354   | J- 2    | B/L NO. RSPL/DEL/5097 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:44.35      | 195115.00 |           | 5660565.00 Dr |
| 13/09/2005 | 2     | B 7     | CHQ. NO. 165896<br>CH.RECD.ON ACCOUNT                                             |           | 200000.00 | 5460565.00 Dr |
| 13/09/2005 | 3     | B 7     | CHQ. NO. 165899<br>CH.RECD. ON ACCOUNT                                            |           | 210000.00 | 5250565.00 Dr |
| 15/09/2005 | 362   | J- 2    | B/L NO. RSPL/DEL/3233<br>DESTINATION:CHITTAGONG,BANGLADESH CBM:0;<br>Exch. Rate:0 | 66465.00  |           | 5317030.00 Dr |
| 20/09/2005 | 3     | B 7     | CHQ. NO. 958591<br>CH.RECD. ON ACCOUNT                                            |           | 200000.00 | 5117030.00 Dr |
| 20/09/2005 | 4     | B 7     | CHQ. NO. 958592<br>CH.RECD. ON ACCOUNT                                            |           | 200000.00 | 4917030.00 Dr |
| 20/09/2005 | 370   | J- 2    | B/L NO. RSPL/DEL/5099 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:44.35      | 194415.00 |           | 5111445.00 Dr |
| 22/09/2005 | 375   | J- 2    | B/L NO. RSPL/DEL/5103 DESTINATION:CHICAGO,IL<br>CBM:0; Exch. Rate:44.6            | 195361.00 |           | 5306806.00 Dr |
| 22/09/2005 | 376   | J- 2    | B/L NO. RSPL/DEL/5102 DESTINATION:MIAMI (U.S.A.)<br>CBM:0; Exch. Rate:44.6        | 179305.00 |           | 5486111.00 Dr |
| 22/09/2005 | 377   | J- 2    | B/L NO. RSPL/DEL/5101 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:44.6       | 195361.00 |           | 5681472.00 Dr |
| 23/09/2005 | 379   | J- 2    | B/L NO. RSPL/DEL/5107 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:44.6       | 196361.00 |           | 5877833.00 Dr |
| 23/09/2005 | 380   | J- 2    | B/L NO. RSPL/DEL/5108 DESTINATION:ST. LOUIS(U.S.A.)<br>CBM:0; Exch. Rate:44.6     | 181535.00 |           | 6059368.00 Dr |
| 26/09/2005 | 1     | B 7     | CHQ. NO. 958533<br>CH.RECD. ON ACCOUNT                                            |           | 200000.00 | 5859368.00 Dr |
| 28/09/2005 | 1     | B 7     | CHQ. NO. 958534<br>CH.RECD. ON ACCOUNTS                                           |           | 150000.00 | 5709368.00 Dr |
| 28/09/2005 | 390   | J- 2    | B/L NO. RSPL/DEL/5109 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:44.6       | 195361.00 |           | 5904729.00 Dr |
| 29/09/2005 | 1     | B 7     | CHQ. NO. 958835<br>ch.recd. on account                                            |           | 150000.00 | 5754729.00 Dr |
| 01/10/2005 | 1     | B 7     | CHQ. NO. 958456<br>CH.RECD. ON ACCOUNT                                            |           | 200000.00 | 5554729.00 Dr |

000029

# ROSMARINE SHIPPING PVT. LTD.

Statement Of Account (Sub Ledger) Starting From 01/04/2005 To 31/03/2006

Sub Ledger No. :- 1 Description :- SUNDRY DEBTORS

Sub Ledger Code From :- C004 To :- C004

| V. Date    | V. No | V. Type | Narration                                                                    | Debit     | Credit    | Balance      |
|------------|-------|---------|------------------------------------------------------------------------------|-----------|-----------|--------------|
| 04/10/2005 | 1     | B 7     | CHQ. NO. 958498<br>CH.RECD. ON ACCOUNT                                       |           | 200000.00 | 5354729.00Dr |
| 05/10/2005 | 406   | J- 2    | B/L NO. RSPL/DEL/5113 DESTINATION:MIAMI (U.S.A.)<br>CBM:0; Exch. Rate:0      | 181535.00 |           | 5536264.00Dr |
| 06/10/2005 | 442   | J- 2    | B/L NO. RSPL/DEL/5115 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0     | 197254.00 |           | 5733518.00Dr |
| 06/10/2005 | 443   | J- 2    | B/L NO. RSPL/DEL/5118 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:45.1  | 197254.00 |           | 5930772.00Dr |
| 08/10/2005 | 1     | B 7     | CHQ. NO. 961905<br>CH.RECD. ON ACCOUNT                                       |           | 200000.00 | 5730772.00Dr |
| 11/10/2005 | 1     | B 7     | CHQ. NO. 961906<br>CH.RECD ON ACCOUNT                                        |           | 200000.00 | 5530772.00Dr |
| 13/10/2005 | 1     | B 7     | CHQ. NO. 961906<br>CH.NO.961906 BOUNS                                        | 200000.00 |           | 5730772.00Dr |
| 13/10/2005 | 6     | B 7     | CHQ. NO. 961802<br>BEING CHQ RECEIVED ON ACCOUNT                             |           | 200000.00 | 5530772.00Dr |
| 13/10/2005 | 424   | J- 2    | B/L NO. RSPL/DEL/5121 DESTINATION:MIAMI (U.S.A.)<br>CBM:0; Exch. Rate:45     | 182925.00 |           | 5713697.00Dr |
| 17/10/2005 | 6     | B 7     | CHQ. NO. 961803<br>BEING CHQ RECD. ON A/C                                    |           | 200000.00 | 5513697.00Dr |
| 17/10/2005 | 429   | J- 2    | B/L NO. RSPL/DEL/5123 DESTINATION:ST. LOUIS(U.S.A.)<br>CBM:0; Exch. Rate:0   | 183273.00 |           | 5696970.00Dr |
| 17/10/2005 | 444   | J- 2    | B/L NO. RSPL/DEL/5124 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:0     | 197821.00 |           | 5894791.00Dr |
| 17/10/2005 | 445   | J- 2    | B/L NO. RSPL/DEL/5125 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:45.25 | 197821.00 |           | 6092612.00Dr |
| 19/10/2005 | 1     | B 7     | CHQ. NO. 961906<br>TO CH.NO. 961906 RE.-DEPOSIT                              |           | 200000.00 | 5892612.00Dr |
| 20/10/2005 | 1     | B 7     | CHQ. NO. 961752<br>TO CH.RECD. ON ACCOUNT OLD DUES                           |           | 200000.00 | 5692612.00Dr |
| 22/10/2005 | 1     | B 7     | CHQ. NO. 961906<br>TO CH.NO.961906 BOUNS                                     | 200000.00 |           | 5892612.00Dr |
| 22/10/2005 | 2     | B 7     | CHQ. NO. 961752<br>TO CH.NO.961752 BOUNS                                     | 200000.00 |           | 6092612.00Dr |
| 26/10/2005 | 454   | J- 2    | B/L NO. RSPL/DEL/5129 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:45.55 | 198957.00 |           | 6291569.00Dr |
| 26/10/2005 | 455   | J- 2    | B/L NO. RSPL/DEL/5130 DESTINATION:CHICAGO, U.S.A.<br>CBM:0; Exch. Rate:45.55 | 198957.00 |           | 6490526.00Dr |
| 03/11/2005 | 1     | B 7     | TO DD.RECD.ONA/C                                                             |           | 400000.00 | 6090526.00Dr |
| 05/11/2005 | 3     | B 7     | CHQ. NO. 966319<br>CH.RECED. ON ACCOUNT                                      |           | 200000.00 | 5890526.00Dr |
| 07/11/2005 | 1     | B 2     | CHQ. NO. 966320<br>CH.RECD. ON ACCOUNT                                       |           | 259512.00 | 5631014.00Dr |
| 16/11/2005 | 1     | B 5     | CHQ. NO. 145236<br>BEING ON ACCOUNT CHQ RECEIVED                             |           | 450000.00 | 5181014.00Dr |
| 28/11/2005 | 1     | B 7     | CHQ. NO. 172623<br>CH.RECD. ON ACCOUNT                                       |           | 150000.00 | 5031014.00Dr |

000030

**ROSMARINE SHIPPING PVT. LTD.**

Statement Of Account (Sub Ledger) Starting From 01/04/2005 To 31/03/2006

Sub Ledger No. :- 1 Description :- SUNDRY DEBTORS

Sub Ledger Code From :- C004 To :- C004

| V. Date    | V. No | V. Type | Narration                                                                                                   | Debit             | Credit      | Balance       |
|------------|-------|---------|-------------------------------------------------------------------------------------------------------------|-------------------|-------------|---------------|
| 15/12/2005 | 490   | J- 2    | B/L NO. RSPL/DEL/5151 DESTINATION: BALTIMORE (U.S.A.) CBM:0; Exch. Rate:0                                   | 131358.00         |             | 5162372.00 Dr |
| 23/12/2005 | 1     | B 7     | CHQ. NO. 951533<br>CH.RECED.ON ACCOUNT                                                                      |                   | 200000.00   | 4962372.00 Dr |
| 24/12/2005 | 1     | B 7     | CHQ. NO. 951534<br>CH.RECED.ON ACCOUNT                                                                      |                   | 200000.00   | 4762372.00 Dr |
| 26/12/2005 | 1     | B 7     | CHQ. NO. 951535<br>CH.RECED.ON ACCOUNT                                                                      |                   | 250000.00   | 4512372.00 Dr |
| 02/01/2006 | 2     | B 7     | CHQ. NO. 95360<br>CHQ RECVD ON A/C                                                                          |                   | 150000.00   | 4362372.00 Dr |
| 02/01/2006 | 3     | B 7     | CHQ. NO. 953602<br>CHQ RECVD ON ACCOUNT                                                                     |                   | 150000.00   | 4212372.00 Dr |
| 16/01/2006 | 1     | B 7     | CHQ. NO. 954571<br>CHEQUE RECD. ON ACCOUNT                                                                  |                   | 150000.00   | 4062372.00 Dr |
| 19/01/2006 | 1     | B 7     | CHQ. NO. 954572<br>CHEQUE RECD. ON ACCOUNT                                                                  |                   | 200000.00   | 3862372.00 Dr |
| 19/01/2006 | 3     | B 7     | CHQ. NO. 954571<br>BEING CHQUE OF CLUTCH AUTO LTD. BOUNCED DUE TO INSUFFICIENT BALANCE IN THE PARTY ACCOUNT | 150000.00         |             | 4012372.00 Dr |
| 19/01/2006 | 4     | B 7     | CHQ. NO. 954571<br>BOUNCED CHEQUE OF CLUTCH AUTO LTD. REDEPOSITED IN THE BANK                               |                   | 150000.00   | 3862372.00 Dr |
| 24/01/2006 | 2     | B 7     | CHQ. NO. 954572<br>BEING CHQ RETURNED FROM BANK WITHOUT CLR                                                 | 200000.00         |             | 4062372.00 Dr |
| 30/01/2006 | 1     | B 7     | CHQ. NO. 954876<br>BEING CHQ RECVD ON A/C                                                                   |                   | 100000.00   | 3962372.00 Dr |
| 31/01/2006 | 2     | B 7     | CHQ. NO. 954572<br>BEING BOUNCED CHEQUE REDEPOSITED                                                         |                   | 200000.00   | 3762372.00 Dr |
| 13/02/2006 | 15    | B 7     | CHQ. NO. 954877<br>BEING CHQ RECEIVED ON ACCOUNT CHQ NO. 954877                                             |                   | 100000.00   | 3662372.00 Dr |
| 14/02/2006 | 2     | J- 1    | BEING CHQ BOUNCHING CHG COLLECTED                                                                           | 500000.00         |             | 4162372.00 Dr |
| 14/02/2006 | 3     | J- 1    | BEING INT ON LATE PAYMENT CHARGED                                                                           | 415000.00         |             | 4577372.00 Dr |
| 18/02/2006 | 4     | J- 1    | BEING BALANCE TRANSFERRED FROM CLUTCH AUTO IMPORT LEDGER ACCOUNT (SUNDRY DEBTOR)                            | 701446.00         |             | 5278818.00 Dr |
|            |       |         |                                                                                                             | 11432371.00       | 10137028.00 |               |
|            |       |         |                                                                                                             | Closing Balance : |             | 5278818.00 Dr |

000031



ROSMARINE SHIPPING PVT. LTD.

**ANNEXURE II D**

B-57, 11nd Floor, Kalkaji, New Delhi-110019  
Tel.: 91 11 41716550-53 Fax: 91 11 41716554  
E-mail : rosmarine@rosmarineshipping.com  
Website: www.rosmarineshipping.com

Date --- 10/02/2006

To

CLUTCH AUTO LIMITED  
2E/14, FIRST FLOOR  
JHANDEWALAN EXTENSION  
NEW DELHI -- 110055

SUBJECT --- OUTSTANDING DUES OF RS. 55,88,163.00

PLEASE REFER TO OUR VARIOUS EARLIER COMMUNICATIONS ON THE  
SUBJECT OF OUR OUTSTANDING AMOUNT OF RS 55,88,163.00.

YOU ARE WELL AWARE OF THE FACT THAT THE AMOUNT OF RS  
55,88,163.00 LACS IS OUTSTANDING FROM YOU TO US. YOU ARE REFERRING  
TO THE STAMP PUT ON BILL OF LADING NO RSPL/DEL/BAL/005151 DTD 14  
TH DECEMBER, 2005, WHERE IN ITS IS STATED FREIGHT PREPAID.  
YOU HAVE INTENTIONALLY OMITTED TO FURTHER OBSERVE THAT THE  
STAMP ON THE BILLS OF LADING IN FULL IS AS UNDER.

FREIGHT PREPAID AT DELHI SUBJECT TO REALISATION.

YOU HAVE ALSO FAILED TO APPRECIATE THAT AS A FREIGHT  
FORWARDER WE HAVE A LIEN ON THE CONSIGNMENT TILL THE FREIGHT  
AND FREIGHT RELATED CHARGES HAVE BEEN PAID TO US IN  
TOTO. APART FROM HUGE OUTSTANDING FREIGHT AMOUNT WHICH IS  
DUE TO US AND NOT BEEN PAID TO US BY YOU TILL DATE, EVEN AFTER  
ALL PREVIOUS SHIPMENTS HAVE BEEN DELIVERED. ALSO AS FAR AS THE  
SUBJECT SHIPMENT IS CONCERNED TILL NOW YOU HAVE NOT PAID THE  
FREIGHT CHARGES WHICH IS DUE THEREFORE AS A SERVICE PROVIDER  
WE CAN EXERCISE LIEN TO WITH HOLD THE SHIPMENT TILL YOU CLEAR  
OUR OUTSTANDING AMOUNT IN FULL.

WE HAVE EXERCISED OUR LIEN ON THE SAID SHIPMENT AND THE SAME  
SHALL NOT BE RELEASED TILL THE AMOUNT DUE TO US HAS BEEN  
FINALLY PAID BY YOU.

THERE IS NO INTENTION AT ALL TO WITH HOLD THE SHIPMENT  
ILLEGALLY OR TO MISAPPROPRIATE THE SAME.

000032



## ROSMARINE SHIPPING PVT. LTD.

B-57, 11nd Floor, Kalkaji, New Delhi-110019  
Tel.: 91 11 41716550-53 Fax: 91 11 41716554  
E-mail : rosmarine@rosmarineshipping.com  
Website: www.rosmarineshipping.com

WE ARE WELL IN WITH IN OUR RIGHTS TO EXERCISE THIS LIEN ON THE  
CONSIGNMENT .

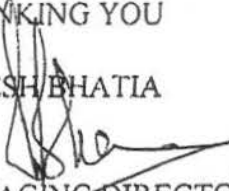
THE TERMS AND CONDITIONS SPECIFIED ON THE BILLS OF LADING AND  
BINDING BETWEEN THE PARTIES CLEARLY PROVIDE FOR THE SAME .  
YOU ARE REQUESTED TO IMMEDIATELY PAY THE AMOUNT OF RS  
55.88.163.00 SO THAT THE CONSIGNMENT CAN BE RELEASED  
IMMEDIATELY.

WE DISCLAIM ANY LIABILITY TOWARDS DEMMURAGE AND ANY OTHER  
CONSEQUENT LOSS WHICH MAY BE SUFFERED BY YOU AS WE ARE NOT  
LIAIBLE FOR THE SAME IN ANY MANNER AS THE SAME IS NOT BEING  
CAUSED DUE TO ANY LAPSE ON OUR PART .

IN YOUR RESPONSE DATED 14 FEB 2006 YOU HAVE THREATNED TO  
INITIATE CIVIL AS WELL AS CRIMIMNAL PROCEEDINGS IN THE COURT OF  
LAW . YOU ARE ADVISED THAT ALL SUCH LITIGATIONS SHALL BE FIRMLY  
RESISTED AND DEFENDED BY US AND YOU SHALL BE ENTIRELY  
RESPONSIBLE TOWARDS THE COSTS AND CONSEQUENCES OF INITIATING  
VEXATIOUS LITIGATION AGAINST US .

THANKING YOU

RAJESH BHATIA

  
MANAGING DIRECTOR

000033

From: "r.bhatia" <r.bhatia@rosmarineshipping.com>  
To: "raymond.wu@itcny.com" <Raymond.Wu@itcny.com>  
Sent: Saturday, February 25, 2006 4:13 AM  
Subject: Re: D & W CLUTCH & BRAKE

Raymond .

Thanks for a good msg sent to them but pls note erroneously you have mentioned usd 1,50,000 where as the amount is in Indian rupees 1,50,000 which is equalvent to usd 3488 only .You may send them a msg if you desire to do so after necessary corrections on amount .

Regds  
Raj

----- Original Message -----

From: "raymond.wu@itcny.com" <Raymond.Wu@itcny.com>  
To: <VKM@CLUTCHAUTO.COM>; "ASH (E-mail)" <akkibean@gmail.com>;  
<CLUTCHUSA@GMAIL.COM>  
Cc: <R.BHATIA@ROSMARINESHIPPING.COM>; <SKG@ROSMARINESHIPPING.COM>  
Sent: Saturday, February 25, 2006 3:59 AM  
Subject: D & W CLUTCH & BRAKE

RE: HOLD SHIPMENT ON D & W CLUTCH & BRAKE

HB/L# RSPL/DEL/BAL/005-151  
CTN# IPXU-3304500  
C/NEE: D & W CLUTCH & BRAKE

TO: MR. ASH & VIJAY MEHTA @ CLUTCH AUTO

PLEASE NOTE THAT THIS SHIPMENT IS ON A HOLD BECAUSE (CLUTCH AUTO @ INDIA) HAS AN PREVIOUS OUTSTANDING BALANCE WITH OUR AGENT (ROSMARINE SHIPPING) IN

THE AMOUNT OF \$109,096.00 USD. THE ABOVE MENTIONED SHIPMENT WILL NOT BE RELEASED TO CLUTCH AUTO UNTIL THE OUTSTANDING BALANCE OF \$109,096.00 IS RECOVERED BY ROSMARINE SHIPPING PVT. LTD.

ROSMARINE HAS ACKNOWLEDGED THAT THEY HAVE RECEIVED A PAYMENT OF \$1,50,000RS FROM CLUTCH AUTO FOR WHICH WAS FOR PAYMENT TOWARDS THE LESSENING OF THE OUTSTANDING BALANCE OF \$109,096.00 USD.

WE WILL NOT BE HELD RESPONSIBLE FOR ANY FAULT OR NEGLIGENCE ON OUR PART DUE TO THE DEVELOPMENT WHICH HAS OCCURRED DUE TO YOUR OUTSTANDING BALANCE WITH

000034

4/25/2007

IV

Page 2 of 2

ROSMARINE SHIPPING.

WE RESERVE THE RIGHT TO LEGAL ACTION AGAINST CLUTCH AUTO LIMITED FOR THE  
RECOVERY OF OUTSTANDING FUNDS ON BEHALF OF OUR AGENT ROSMARINE  
SHIPPING PVT  
LTD.

THANK YOU

Raymond Wu

OCEAN IMPORTS DEPT.

147-48 182ND ST # 2 FLOOR

Jamaica, NY 11413

TEL: 718-656-0831

FAX: 718-656-0579

000035

4/25/2007

07c ANNEXURE VI

IN THE HIGH COURT OF DELHI AT NEW DELHI.

(COMPANY JURISDICTION)

COMPANY PETITION NO. 216 OF 2006

IN THE MATTER OF: -

M/S ROSMARINE SHIPPING (P) LTD. ... PETITIONER

VERSUS

M/S CLUTCH AUTO LTD. ... RESPONDENT

I N D E X

| SL. NO. | PARTICULARS                                                   | PAGE NO. | COURT FEE          |
|---------|---------------------------------------------------------------|----------|--------------------|
|         | COURT FEE                                                     | A = C    | 250/-              |
| 2.      | URGENT APPLICATION                                            | D        | Rs.3/-             |
| 3.      | MEMO OF PARTIES                                               | E        | - - -              |
| 4.      | WINDING UP PETITION                                           | 1 = 9    | - - -              |
| 5.      | AFFIDAVIT IN SUPPORT                                          | 10       | - - -              |
| 6.      | BOARD RESOLUTION<br>DT. 31/07/2006.                           | 11       | - - -              |
| 7.      | PHOTOCOPY OF DEBIT NOTE<br>DATED 15/12/2005 &<br>FREIGHT BILL | 12 - 13  | - - -              |
| 8.      | COPY OF LETTER DATED<br>27/10/2005                            | 14 = 16  | - - -              |
| 9.      | COPY OF LETTER/e-Mail<br>DATED 10/03/2006                     | 17 - 18  | - - -              |
| 10.     | STATEMENT OF ACCOUNT                                          | 19       | - - -              |
| 11.     | COPY OF BALANCE STATEMENT<br>OF DEFENDANT.                    | 20       | - - -              |
| 12.     | COPY OF LEGAL NOTICE DATED<br>24/04/2006                      | 21 = 24  | - - -              |
| 13.     | TRUE TYPED COPY OF NOTICE                                     | 25 = 28  | - - -              |
| 14.     | ORIGINAL REPLY OF RESPONDENT<br>TO NOTICE OF PETITIONER       | 29 = 30  | - - -              |
| 15.     | VAKALATNAMA                                                   | 31       | Rs.3/-<br>+Rs.10/- |

000036

**International Touch Consolidator Inc.****147-48 182nd Street****2nd Floor****Jamaica, NY 11413****Tel:718-6560831 Fax:718-6560579****TO:** Federal Maritime Commission**DATE:** 8/10/2006**ATTN:** Venetia D. Bell (Settlement Officer)**PAGES:** One Page Total**FROM:** Wesley Leung**Fax no.:** 202-275-0059**RE:** Informal Docket No. 1880(I)**EXTENSION REQUEST****To: Venetia D. Bell (Settlement Officer)**  
**c.c. Mr. Kevin Keller**

As per our conversation on August 3, 2006, please note that we have been in contact with Mr. Kevin Keller of Panalpina Customs Brokers. He is the individual whom had filed this claim on behalf of Clutch Auto Limited. He has accepted our request for an extension on this pending claim against Int'l Touch Consolidator Inc. He has no objections to our extension request.

We have requested that this claim be extended to September 10, 2006 due to the fact that we are currently still waiting for all supporting documents from our overseas agent Rosmarine Shipping.

We have already forwarded the informal docket no. 1880(I) to our attorney for their review of this matter.

Please contact me with any question at the above number.

Regards,

Wesley Leung

Imports Manger

000037





# Memorandum

**TO :** Venetia Bell

**DATE:** July 6, 2006

**FROM :** Commission Alternative Dispute Resolution Specialist

**SUBJECT :** Assignment of Informal Docket 1880(I)

Pursuant to 46 CFR 502.301(b), I am appointing you to be the Settlement Officer in Informal Docket No. 1880(I): *Clutch Auto Limited v. International Touch Consolidator Inc.* Please issue a *Notice of Filing and Assignment* as soon as possible. Thanks,



Ronald D. Murphy

cc: Secretary

000040

FEDERAL MARITIME COMMISSION  
INFORMAL DOCKET NO. 1880(I)

CLUTCH AUTO LTD  
(Claimant)

v.

INTERNATIONAL TOUCH CONSOLIDATOR, INC.  
(Respondent)

RESPONDENT'S ANSWER TO COMPLAINT

The Respondent, International Touch Consolidator, Inc. herein referred to as "ITC", by their attorneys, Follick & Bessich P.C. as and for their Answer to the Complaint, on information and belief, alleges:

1. The Respondent, ITC had difficulty in locating counsel to represent them in this matter due to the specialty nature of this type of proceeding. There was an extension of time to answer granted but this answer is late under the extension. Pursuant to 46 CFR 502.64(b) the Respondent respectfully requests the presiding officer to permit the filing of this delayed answer based upon good cause shown.

000041

2. The Respondent, ITC denies the allegations represented in the Claimant's complaint.

RESPONDENT'S REPRESENTATION OF THE FACTS

3. The Claimant, Clutch Auto Ltd, herein referred to as Clutch Auto, an Indian Corporation retained the services of Rosmarine Shipping PVT Ltd, herein referred to as Rosmarine, also an Indian Corporation, to handle the transport of auto parts from India to Baltimore, Maryland, USA. It was agreed that Clutch Auto would pay Rosmarine directly for the transportation services. The Claimant sold these auto parts to D & W Clutch & Brake herein referred to as D & W, who are located in Baltimore. Clutch Auto has utilized the services of Rosmarine many times in the past.
4. Rosmarine subcontracted out these transportation services to the Respondent, ITC. The original Bill of Lading was issued by ITC for Rosmarine. The vessel to carry the goods from India to the United States was arranged through MacAndrew & Company Ltd. USA herein referred to as MacAndrews, who also issued their own Bill of Lading for the goods when the goods were put in

000042

MacAndrews' original Bill of Lading was given to Rosmarine.

5. The goods arrived in Baltimore under MacAndrews' custody. Upon information and belief the goods were paid for and all freight charges were satisfied. ITC released their original Bill of Lading but Rosmarine has refused to release MacAndrews' Bill of Lading, which is still in their custody. Rosmarine claims that Clutch Auto owes them money on other shipments and has claimed a lien against these goods until Clutch Auto pays Rosmarine for previous shipment charges. MacAndrews refuses to release the goods without presentation of their original Bill of Lading.
6. The Respondent, ITC has released their original Bill of Lading and has requested Rosmarine to release MacAndrews' Original Bill of Lading but Rosmarine refuses to do so. ITC has even offered to pay Rosmarine any fees that are due on this transaction but Rosmarine refuses to release MacAndrews' Bill of Lading until Clutch Auto pays all of the back fees due for previous shipments.

000043

7. The Respondent ITC has done everything in their power to resolve this problem but is incapable of doing so unless Rosmarine agreed to release the MacAndrews' Bill of Lading or MacAndrews' agrees to release the goods without the endorsed Bill of Lading.

WHEREFORE, the Respondent, International Touch Consolidator Inc. respectfully request the Commission to compel Rosmarine to release the Original MacAndrews' Bill of Lading or authorize MacAndrews to release the goods without the endorsed Bill of Lading, as well as any other relief the Commission deems appropriate.

Dated: September 21, 2006



Glenn H. Ripa, Esq.  
Follick & Bessich P.C.  
225 Broadway, Suite 1607  
New York, New York 10007  
Tele # 212 732-5310  
Fax # 212 406-2908  
Attorneys for Respondent,  
International Touch Consolidator

000044

000045

Before the  
FEDERAL MARITIME COMMISSION

Informal Docket No. 1880(I)

Clutch Auto Ltd.,  
Claimant,

v.

International Touch Consolidator, Inc. and

MacAndrews & Company, Ltd.  
Respondents.

**Opposition to Informal Procedure**

Pursuant to the Notice of Filing and Assignment and Subpart S, section 502.301 *et seq.* of Title 46 C.F.R., of the Rules of the Commission, MacAndrews & Company Ltd. ("MacAndrews"), by its undersigned counsel, respectfully objects to the use of informal procedures in this matter.

As is quite apparent from the face of the Complaint and the supporting documents, the Complainant, Clutch Auto Ltd., has a dispute with its contracting parties International Touch Consolidator, Inc. and Rosmarine Shipping Private Ltd. Clutch Auto does not have a contract with MacAndrews and has not alleged a cognizable violation of the Shipping Act with respect to MacAndrews.

Accordingly, MacAndrews respectfully objects to use of the informal proceedings under Subsection S of the Commission rules for disposition of this matter. MacAndrews respectfully denies that the relief sought by Complainant against MacAndrews is

RECEIVED  
2006 SEP 25 PM 4:12  
FEDERAL MARITIME COMMISSION  
DISPUTE RESOLUTION SYS  
COMMERCIAL AFFAIRS &  
CONSUMER AFFAIRS

000046

warranted and, indeed, urges that no relief whatsoever against MacAndrews is warranted.

Respectfully submitted,



Timothy B. Shea  
Nemirow Hu & Shea  
1629 K Street, NW Suite 500  
Washington, DC 20006  
Tel 202 835 0300  
Fax 202 835 0306

Counsel for MacAndrews & Company Ltd.

000047

**Federal Maritime Commission**

**Informal Docket No. 1885(I)**

RECEIVED

2007 APR 30 PM 3:21

OFFICE OF  
ADMIN LAW JUDGES

**D&W Clutch and Brake**

**v.**

**International Touch Consolidator, Inc.  
MacAndrews and Company, Ltd.  
And  
Rosmarine Shipping Private Limited**

**Notice of Objection to Informal Proceedings**

Pursuant to 46 C.F.R. section 502.304(e), MacAndrews and Company, Ltd.  
respectfully objects to use of the informal procedures in this action.

MacAndrews had previously objected to use of the informal procedure in the  
related action that was consolidated with the subject action by order of the Acting Chief  
Administrative Law Judge of April 10, 2007.

Respectfully submitted,



Timothy B. Shea  
Nemirow Hu & Shea  
1629 K Street, NW Suite 500  
Washington, DC 20006

Counsel for MacAndrews and Company,  
Ltd.

000048

Certificate of Service

I hereby certify that I have served the foregoing Notice of Objection on the following parties and / or counsel by facsimile and email as indicated below:

D & W Clutch & Brake  
2601 Sission Street  
Baltimore, MD 21211  
Fax no. 410 235 8862; by email at [kkeller@dwclutch.com](mailto:kkeller@dwclutch.com)  
Robert Brennan, Miles & Stockbridge, 10 Light Street, Baltimore, MD 21202  
at [rbrennan@milesstockbridge.com](mailto:rbrennan@milesstockbridge.com)

Clutch Auto Ltd.  
1601 61<sup>st</sup> Place South  
Meridian, MS 39307  
Fax no. 011 91 129 227 6039; email at [vmk@clutchauto.com](mailto:vmk@clutchauto.com) and  
[exports@clutchauto.com](mailto:exports@clutchauto.com)

Rosmarine Shipping Private Ltd. at fax no. 011 91 11 417 16554; email at  
[custcare@rosmarine.com](mailto:custcare@rosmarine.com) and [rosmarine@rosmarine.com](mailto:rosmarine@rosmarine.com)

International Touch Consolidator Inc. by email at [Raymond.wu@itcnny.com](mailto:Raymond.wu@itcnny.com)  
and [Glen H. Ripa, Esq., Follick & Bessich](mailto:Glen.H.Ripa@follick.com), 225 Broadway, Suite 1607 NY,  
NY 10007 by fax at 212 406 2908

This 24 the day of April 2007.



Timothy B. Shea

FEDERAL MARITIME COMMISSION

D&W CLUTCH & BRAKE

Claimant,

v.

Informal Docket No.: 1885(I)

INTERNATIONAL TOUCH CONSOLIDATOR, INC.,  
MacANDREWS AND COMPANY LIMITED, USA, and  
ROSMARINE SHIPPING PRIVATE LIMITED

Respondents

---

**RESPONDENT'S ANSWER TO COMPLAINT**

- 1- The Respondent, International Touch Consolidator (hereinafter "ITC" or "Respondent") denies each and every allegation represented in the Claimant's complaint.
- 2- The Respondent consents to the adjudication of this matter under the informal procedures set forth under Subpart S of the Commission's Rules of Practice and Procedure (46 C.F.R. §§502.301-305).

**RESPONDENT'S REPRESENTATION OF THE FACTS**

3- Clutch Auto Ltd, an Indian Corporation (herein referred to as "Clutch Auto"), retained the services of Respondent, Rosmarine Shipping PVT Ltd. (herein referred to as "Rosmarine"), also an Indian Corporation, to handle the transport of auto parts from India to Baltimore, Maryland, USA. It was agreed that Clutch Auto would pay Rosmarine directly for the transportation services. Clutch Auto sold these auto parts to the claimant, D&W Clutch & Brake (herein referred to as "D&W"), which is located in Baltimore. Clutch Auto has utilized the services of Rosmarine many times in the past.

RECEIVED

07 MAY 10 PM 3:07

OFFICE OF THE SECRETARY  
FEDERAL MARITIME COMM

000050

4- Rosmarine subcontracted out these transportation services to the Respondent, ITC. The original Bill of Lading was issued by ITC for Rosmarine. The vessel to carry the goods from India to the United States was arranged through Respondent MacAndrew & Company Ltd. USA (herein referred to as "MacAndrews"), who also issued their own Bill of Lading for the goods when the goods were put in their custody. MacAndrews' original Bill of Lading was given to Rosmarine.

5- The subject goods arrived in Baltimore under MacAndrews' custody. Upon information and belief, the goods were paid for and all freight charges were satisfied. ITC released their original Bill of Lading but Rosmarine has refused to release MacAndrews' Bill of Lading, which is still in their custody. Rosmarine claims that Clutch Auto owes them money on other shipments and has claimed a lien against these goods until Clutch Auto pays Rosmarine for previous shipment charges. MacAndrews refuses to release the goods without presentment of their original Bill of Lading.

6- The Respondent, ITC has released their original Bill of Lading and has requested Rosmarine to release MacAndrews' Original Bill of Lading but Rosmarine refuses to do so. ITC has even offered to pay Rosmarine any fees that are due on this transaction but Rosmarine refuses to release MacAndrews' Bill of Lading until Clutch Auto pays all of the back fees due for previous shipments.

7- The Respondent ITC has done everything in their power to resolve this problem but is incapable of doing so unless Rosmarine agrees to release the MacAndrews' Bill of Lading or MacAndrews' agrees to release the goods without the endorsed Bill of Lading.

WHEREFORE, the Respondent, International Touch Consolidator Inc. respectfully requests that the Commission compel Rosmarine to release the Original MacAndrews' Bill of Lading or

authorize MacAndrews to release the goods without the endorsed Bill of Lading, as well as any other relief the Commission deems appropriate.

Dated: April 24, 2007



Glenn H. Ripa, Esq.  
Follick & Bessich P.C.  
*Attorneys for Respondent*  
*International Touch Consolidator*  
225 Broadway, Suite 1607  
New York, New York 10007  
Tel. No.: 212 732-5310  
Fax No.: 212 406-2908

VERIFICATION

STATE OF NEW YORK     )  
                                  ss.:  
COUNTY OF NEW YORK    )

Raymond Wu, being duly sworn deposes and says that he is an importer employed by International Touch Consolidator, Inc. And that he has read the foregoing answer and that the facts set forth are true to the best of his knowledge based upon information and belief.

Raymond Wu.  
Raymond Wu

Sworn to before me  
This 24<sup>th</sup> of April, 2007

Glenn Ripa  
Notary Public

GLENN RIPA  
Notary Public, State of New York  
No. 30-4886265  
Qualified in Nassau County  
Commission Expires May 18, 2009

For and on behalf of  
INTL TOUCH CONSOLIDATOR INC.

Raymond Wu.  
Authorized Signature(s)

000053

CC: OGC  
**ORIGINAL**  
Pub  
ALJ

RECEIVED

07 JUL 20 PM 12:19

OFFICE OF THE SECRETARY  
FEDERAL MARITIME COMM

FEDERAL MARITIME COMMISSION

D&W CLUTCH & BRAKE

Claimant,

v.

Docket No.: 1885(F)

INTERNATIONAL TOUCH CONSOLIDATOR, INC.,  
MacANDREWS AND COMPANY LIMITED, USA, and  
ROSMARINE SHIPPING PRIVATE LIMITED

Respondents

RESPONDENT ITC'S AMENDED ANSWER TO COMPLAINT

1- The Respondent, International Touch Consolidator (hereinafter "ITC" or "Respondent") denies each and every allegation represented in the Claimant's complaint.

2- The Respondent consents to the adjudication of this matter under the informal procedures set forth under Subpart S of the Commission's Rules of Practice and Procedure (46 C.F.R. §§502.301-305).

RESPONDENT'S REPRESENTATION OF THE FACTS

3- Clutch Auto Ltd, an Indian Corporation (herein referred to as "Clutch Auto"), retained the services of Respondent, Rosmarine Shipping Private Ltd. (herein referred to as "Rosmarine"), also an Indian Corporation, to handle the transport of auto parts from India to Baltimore, Maryland, USA. It was agreed that Clutch Auto would pay Rosmarine directly for the transportation services. Clutch Auto sold these auto parts to the claimant, D&W Clutch & Brake (herein referred to as "D&W"), which is located in Baltimore. Clutch Auto has utilized the services of Rosmarine many

000054

times in the past.

4- Rosmarine subcontracted out the transportation services to the Respondent, ITC. The International House Bill of Lading was issued by ITC for Rosmarine. The vessel to carry the goods from India to the United States was arranged through Respondent MacAndrew & Company Ltd. USA (herein referred to as "MacAndrews").

5- The subject goods arrived in Baltimore under MacAndrews' custody. Upon information and belief Clutch Auto failed to pay the freight charges on this shipment to Rosmarine. ITC released their International House Bill of Lading but Rosmarine has refused to release the Master Bill of Lading, because Clutch Auto never paid the freight charges on this shipment. Rosmarine claims that Clutch Auto owes them money on this shipment and has claimed a lien against these goods until Clutch Auto pays for these goods. MacAndrews refuses to release the goods without presentment of the Master Bill of Lading.

6- The Respondent, ITC has released their International House Bill of Lading and has requested Rosmarine to resolve this matter with MacAndrews. Rosmarine refuses to release the Master Bill of Lading until Clutch Auto pays their shipping charges.

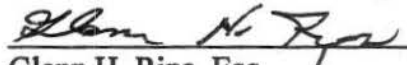
7- The Respondent ITC has done everything in their power to resolve this problem but is incapable of doing so unless Rosmarine agrees to release the Master Bill of Lading or MacAndrews' agrees to release the goods without the endorsed Bill of Lading.

8- Rosmarine has the right to withhold the Master Bill of Lading until Clutch Auto pays the freight charges on this shipment.

WHEREFORE, the Respondent, International Touch Consolidator Inc. respectfully requests that the Commission dismiss the consolidated cases against all of the Respondents, as well as any

other relief the Commission deems appropriate.

Dated: July 19, 2007

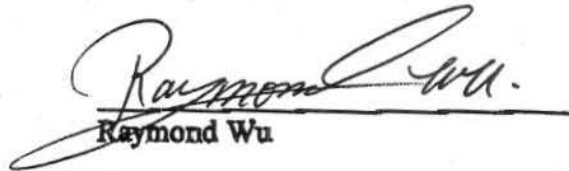
  
Glenn H. Ripa, Esq.  
Follick & Bessich P.C.  
*Attorneys for Respondent*  
*International Touch Consolidator*  
225 Broadway, Suite 1607  
New York, New York 10007  
Tel. No.: 212 732-5310  
Fax No.: 212 406-2908

**VERIFICATION**

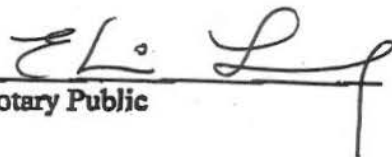
STATE OF NEW YORK     )  
                                  ss.:  
COUNTY OF QUEENS     )

**ELAINE LEUNG**  
**Notary Public, State of New York**  
**No. 01LE5064518**  
**Qualified in New York County**  
**Commission Expires August 20 10**

Raymond Wu, being duly sworn deposes and says that he is an importer employed by International Touch Consolidator, Inc. and that he has read the foregoing amended answer and that the facts set forth are true to the best of his knowledge based upon information and belief.

  
Raymond Wu

Sworn to before me  
This 21<sup>st</sup> of June, 2007

  
Notary Public

000057

000058

7 August 2007

Federal Maritime Commission  
Washington, D.C.  
U.S.A.

RECEIVED

07 AUG 13 PM 4:09

OFFICE OF THE SECRETARY  
FEDERAL MARITIME COMM

Kind Attn: 1. Mr Clay G. Guthridge, Administrative Law Judge  
2. Mr Bryant VanBrakle, Secretary

Hon'ble Sir,

**Informal Docket No.1880 (F)**

**Sub - Order to Supplement the Record dated July 27, 2007, received by us on Monday, August 06, 2007 late evening.**

We bring to your kind notice our e-mail dated 23<sup>rd</sup> May'07 indicating that we have not received any response/ copies of correspondence to our complaint from any of the Defendants. This request was repeated on June 4, June 9, 2007 and August 4, 2007. We have also neither received Rosmarine Shipping Pvt. Ltd.'s reply dated May 1, 2007 as stated in Para (2) of order, nor reply dated 22<sup>nd</sup> June'07 as mentioned in Para (4) of the order.

In the absence of above documents, you will appreciate, it is physically impossible for us to send our reply so as to reach Federal Maritime Commission by August 7, 2007. However, humbly reserving our right to reply in detail after receiving above mentioned documents of Rosmarine Shipping Pvt. Ltd as well as the other Defendants, we send our interim parawise response to your Honour's Order to Supplement the Record dated July 27, 2007 as under.

**Q 1a.** Clutch Auto to provide a legible copy of the front and back of check No. 954571 drawn on Canara Bank Account No. DGG A 000010007;

**Ans:** In India, Banks keep cleared cheques in their custody and are not given to the party. The cheque no.954571 is likewise, in the custody of Canara Bank and we do not have the cheque (or its copy) with us. However, in support of above cheque being passed and credited in Rosmarine Shipping Pvt. Ltd.'s account, a notarized copy of Bank's certificate dated May 28, 2007 is attached herewith as Annexure-1, which confirms the cheque was credited on Jan 21, 2006, in the accounts of M/s. Rosmarine Shipping Pvt. Ltd. Rosmarine appear to have concealed this fact from you.

**Q 1b.** A legible copy of any instruction to Rosmarine given before or with cheque No. 954571 directing the application of the money to a particular item.

000059

**Ans:** The cheque no.954571 was given to Rosmarine alongwith cheque payment voucher dated Dec 15, 2005, wherein it is clearly mentioned that the cheque amount of INR 150,000 includes satisfaction of invoice no.490 dated Dec 12, 2005, of Rosmarine. A copy of the same is attached herewith as Annexure 2.

**Q 2a.** Who created this sub-ledger?

As mentioned above, we have not seen or received the reply filed by Rosmarine. The sub-ledger as referred in Q 2a. is not created by Clutch Auto. It may have been maintained by Rosmarine.

**Q2b.** The following entries appear on page 5 of this sub-ledger:

- I. 16/01/2006 Chq. No. 954571 rec'd on account, credit 150000.00
- II. 19/012006 Chq.No. 954571 being cheque of Clutch Auto Ltd. bounced due to insufficient balance in the party account, debit 150000.00
- III. 19/01/2006 Chq. No. 954671 bounced cheque of Clutch Auto Ltd. redeposited in the bank, credit 150000.00

Do these sub-ledger entries accurately reflect the history of cheque No.954571?

**Ans:** The cheque payment was made by Clutch Auto to Rosmarine of Rs 150,000/- These sub-ledger entries do not accurately reflect the history of cheque No.954571.

The receipt of cheque is shown on account whereas as per the Annexure-2 attached herein above, the entry must reflect towards the payment of invoice no.490 dated Dec 15, 2005.

The date i.e. January 21, 2006, when the cheque was credited in Rosmarine's account is not reflected in the sub-ledger entries being maintained by Rosmarine, and are being concealed from your attention. The reply of Rosmarine was also being hidden from us, to avoid any clarification from us.

**Q3a.** Clutch Auto Invoice No. Ex/2005-2006/72 states that D & W purchase automotive parts from Clutch Auto for a payment of US \$34,014.84. Did D & W pay for the parts?

**Ans:** The payment of US\$ 34,014.84 is not paid by D&W Clutch & Brake as the consignment was withheld by International Touch Consolidator Inc./ Rosmarine. Our accounts records had debited and

then credited (reversed) D&W account for this sale to them. Instead Clutch Auto debited this amount from Rosmarine account.

**Q3b.** Did D & W pay any additional amount for the shipping costs for the automotive parts sold on this invoice? If so, how much?

**Ans:** No, D & W has not paid any additional amount.

**Q3c.** D & W is directed to provide a legible copy of the front and back of any check or other form of payment of any other money to Clutch Auto for the payment for the automotive parts or for shipping the automotive parts sold to D & W by Clutch Auto pursuant to Clutch Auto Invoice No. EX/2005-2006/72.

**Ans:** Query in 3c. is directed to D & W, thus no reply from Clutch Auto. There was no payment made to Clutch Auto.

**Q4a.** Who created this Ledger Account?

**Ans:** The ledger in question is created by Accounts Dept. of Clutch Auto, which is being created and maintained as per the accounting rules and practices which is duly audited by Statutory Auditors.

**Q4b.** Does this debit entry mean that Clutch Auto reimbursed D & W for the payment D & W made to Clutch Auto on Clutch Auto Invoice No. EX/2005-06/72?

**Ans:** No, Clutch Auto did not reimburse payment to D & W, which is out of the question as D&W has not made any payment.

**Q4c.** If not, what does this debit entry mean?

**Ans:** No payments were made by D&W, and there was no return of the funds. Instead the accounts were maintained on the basis of invoices raised by Clutch upon D&W.. At the time of raising the invoice no.EX/2005-06/72 on D & W, the invoice amount of US \$34,014.84 was debited in the account of D&W. When it was realized that Clutch were not entitled to payment from D&W due to a breach, conversion and interference by Rosmarine/Intl Touvch Consolidators, that original entry had to be reversed in the accounts being maintained between D&W and Rosmarine

By raising the debit entry as referred in Question 4b above, the amount of INR 1,897,351 was debited to Rosmarine as per following details :

000061

|                                                     |                       |
|-----------------------------------------------------|-----------------------|
| 1) Consignment value = USD 36186 @ Rs.46.70 =       | INR 1689886.00        |
| 2) Freight on shipment paid                         | = INR 130158.00       |
| 3) Interest on shipment charged by bank             | = INR 57307.00        |
| 4) Exchange rate difference to be debited by Bank = | INR 20000.00          |
|                                                     | <u>INR 1897351.00</u> |

The consignment value was taken as US\$ 36,186 as the trade discount of 6% is only being given to our valued customers and Rosmarine being the party withholding the shipment without any valid/justified reason cannot be given the trade discount of 6%, thus the gross invoice value was debited to Rosmarine.

Accordingly on the basis of this debit note, credit was given in the account of D & W which was earlier debited at the time of raising the invoice.

**Q4d.** Is the debited amount of 18,97,351.00 in Indian Rupees? If so, what was the dollar equivalent of 18,97,351.00 Indian Rupees on the date of the debit entry?

**Ans:** Yes, the debited amount of 18,97,351.00 is in Indian Rupees which was calculated at the exchange rate INR 46.70 per 1 US\$ as per invoice No.EX/2005-06/72. The prevailing exchange rate as on March 6, 2006, i.e. the date of debit entry, was INR 44.30 per 1 US\$, thus amounting to US\$ 42,829.94

**Q4e.** Identify and produce legible copies of any documents related to this entry on the Ledger Account, including, but not limited to, cancelled checks or other forms of payments and accompanying letters or memoranda.

**Ans:** The Notrized copy of debit note no.CA/ACTTS/SUPP/12 dated March 6, 2006 is attached herewith as **Annexure-3**.

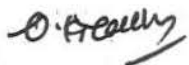
Since the consignment was not delivered by International Touch Consolidator Inc./Rosmarine as per terms of the shipment, there being no other issue admittedly pertaining to this shipment, the amount was debited to Rosmarine and hence this debit note. These were the losses suffered by Cluth Auto on account of breach by Rosmarine/Intl Touch Consolidators.

Since we received Order to Supplement the Record dated July 27, 2007, on Monday August 06, 2007 late evening, it is not possible for us to reach this reply to your good Office by August 7, 2007, through mailing the hard copy thus this reply is being sent through e-mail. However, hard copies of this reply

000062

are being sent through courier separately to your good Office and to all other parties in compliance with your directions to serve on all parties to these proceedings.

For CLUTCH AUTO LIMITED,

  
V.K. MEHTA  
Vice Chairman & Managing Director

000063

( Page 1 of 5 ).  
Indian Customs EDI System / Export (ICES/E)

I.C.D. Tughlakabad , New Delhi  
Shipping Bill for Export

SB No : 1554103 / 13/12/2005

CHA : R-017/98 LOGISTICS INDIA

PrnDt : 14/12/2005 14:33

This consignment was not opened for physical examination by Customs

Port Of Ldg-Code : INTKD6

State of Origin : DELHI

Exporter 0588049522(  
CLUTCH AUTO LTD

Consignee  
M/S. D & W REBUILDERS INTL.

Invoice No & Date EXP/2005-06/07Z 22/06/2005

Exch. Rate 1.00

USD = 43.60

ITEM DETAILS

| No. | RITC CD  | Description                 | Quantity | Units | Item Rate | per  | Units           | Total Val(FC) | FOB(INR) | Scheme   |
|-----|----------|-----------------------------|----------|-------|-----------|------|-----------------|---------------|----------|----------|
|     |          | Scheme Description          |          |       |           |      | Declared        | PMV(INR)      | Accepted | PMV(INR) |
| 1   | 87089300 | CLUTCH PLATES & ASSEMBLY    |          |       |           |      |                 |               |          |          |
| A   | 383      | CCOIP CLUTCH COVER ASSEMBLY |          |       |           |      |                 |               |          |          |
|     |          |                             | 168.000  | PCS   | 127.50000 | per1 | PCS 21420.00000 | 876136.45     | 55       |          |
|     |          | EPCG AND DEPB(POST EXPORTS) |          |       |           |      | 6395.00         | 6395.00       |          |          |
| 2   | 87089300 | CLUTCH PLATES & ASSEMBLY    |          |       |           |      |                 |               |          |          |
| A   | 383      | CCOIP CLUTCH COVER ASSEMBLY |          |       |           |      |                 |               |          |          |
|     |          |                             | 84.000   | PCS   | 91.50000  | per1 | PCS 7686.00000  | 314378.41     | 55       |          |
|     |          | EPCG AND DEPB(POST EXPORTS) |          |       |           |      | 4589.00         | 4589.00       |          |          |
| 3   | 87089300 | CLUTCH PLATES & ASSEMBLY    |          |       |           |      |                 |               |          |          |
| CD  | 128275UL | CLUTCH PLATE                |          |       |           |      |                 |               |          |          |
|     |          |                             | 120.000  | PCS   | 14.00000  | per1 | PCS 1680.00000  | 68716.60      | 55       |          |
|     |          | EPCG AND DEPB(POST EXPORTS) |          |       |           |      | 702.00          | 702.00        |          |          |
| 4   | 87089300 | CLUTCH PLATES & ASSEMBLY    |          |       |           |      |                 |               |          |          |
| CD  | 128276UL | CLUTCH PLATE                |          |       |           |      |                 |               |          |          |
|     |          |                             | 120.000  | PCS   | 14.00000  | per1 | PCS 1680.00000  | 68716.60      | 55       |          |
|     |          | EPCG AND DEPB(POST EXPORTS) |          |       |           |      | 702.00          | 702.00        |          |          |
| 5   | 87089300 | CLUTCH PLATES & ASSEMBLY    |          |       |           |      |                 |               |          |          |
| CD  | 128229UL | CLUTCH PLATE                |          |       |           |      |                 |               |          |          |
|     |          |                             | 60.000   | PCS   | 14.50000  | per1 | PCS 870.00000   | 35585.31      | 55       |          |
|     |          | EPCG AND DEPB(POST EXPORTS) |          |       |           |      | 727.00          | 727.00        |          |          |

( Page 2 of 5 ).  
Indian Customs EDI System / Export (ICES/E)

I.C.D. Tughlakabad , New Delhi  
Shipping Bill for Export

SB No : 1554103 / 13/12/2005

CHA : R-017/98 LOGISTICS INDIA

PrnDt : 14/12/2005 14:33

This consignment was not opened for physical examination by Customs

Port Of Ldg-Code : INTKD6

State of Origin : DELHI

Exporter 0588049522(  
CLUTCH AUTO LTD

Consignee  
M/S. D & W REBUILDERS INTL.

Invoice No & Date EXP/2005-06/07Z 22/06/2005

Exch. Rate 1.00

USD = 43.60

ITEM DETAILS

| No. | RITC CD | Description        | Quantity | Units | Item Rate | per | Units    | Total Val(FC) | FOB(INR) | Scheme   |
|-----|---------|--------------------|----------|-------|-----------|-----|----------|---------------|----------|----------|
|     |         | Scheme Description |          |       |           |     | Declared | PMV(INR)      | Accepted | PMV(INR) |

000064

07802010

|                                     |           |              |               |          |
|-------------------------------------|-----------|--------------|---------------|----------|
| 87089300 CLUTCH PLATES & ASSEMBLY   |           |              |               |          |
| CD128230UL CLUTCH PLATE             | 60.000PCS | 14.50000per1 | PCS 870.00000 | 35585.31 |
| EPCG AND DEPB(POST EXPORTS)         |           |              | 727.00        | 727.00   |
| 7 87089300 CLUTCH PLATES & ASSEMBLY |           |              |               |          |
| CD128215UL CLUTCH PLATE             | 60.000PCS | 16.50000per1 | PCS 990.00000 | 40493.63 |
| EPCG AND DEPB(POST EXPORTS)         |           |              | 827.00        | 827.00   |
| 8 87089300 CLUTCH PLATES & ASSEMBLY |           |              |               |          |
| CD 128216UL CLUTCH PLATE            | 60.000PCS | 16.50000per1 | PCS 990.00000 | 40493.63 |
| EPCG AND DEPB(POST EXPORTS)         |           |              | 827.00        | 827.00   |

( Page 3 of 5 ).  
Indian Customs EDI System / Export (ICES/E)

I.C.D. Tughlakabad , New Delhi  
Shipping Bill for Export

SB No : 1554103 / 13/12/2005

CHA : R-017/98 LOGISTICS INDIA

PrnDt : 14/12/2005 14:33

This consignment was not opened for physical examination by Customs

Port Of Ldg-Code : INTKD6

State of Origin : DELHI

#### DEPB DETAILS

| Inv It                                                   | DGFT            | PN No. | Grp | It.Cd | Rate | DEPB Qty | Value cap | DEPB Amt(INR)  |
|----------------------------------------------------------|-----------------|--------|-----|-------|------|----------|-----------|----------------|
| 1 1                                                      | 12(RE-05)/04-09 | 61     | 440 | 1.000 |      |          |           | 8761.37        |
| (For credit purpose, Customs approved value is 127.50000 |                 |        |     |       |      |          |           | USD per 1 PCS) |
| 1 2                                                      | 12(RE-05)/04-09 | 61     | 440 | 1.000 |      |          |           | 3143.78        |
| (For credit purpose, Customs approved value is 91.50000  |                 |        |     |       |      |          |           | USD per 1 PCS) |
| 1 3                                                      | 12(RE-05)/04-09 | 61     | 441 | 1.000 |      |          |           | 687.16         |
| (For credit purpose, Customs approved value is 14.00000  |                 |        |     |       |      |          |           | USD per 1 PCS) |
| 1 4                                                      | 12(RE-05)/04-09 | 61     | 441 | 1.000 |      |          |           | 687.16         |
| (For credit purpose, Customs approved value is 14.00000  |                 |        |     |       |      |          |           | USD per 1 PCS) |
| 1 5                                                      | 12(RE-05)/04-09 | 61     | 441 | 1.000 |      |          |           | 355.85         |
| (For credit purpose, Customs approved value is 14.50000  |                 |        |     |       |      |          |           | USD per 1 PCS) |
| 1 6                                                      | 12(RE-05)/04-09 | 61     | 441 | 1.000 |      |          |           | 355.85         |
| (For credit purpose, Customs approved value is 14.50000  |                 |        |     |       |      |          |           | USD per 1 PCS) |
| 1 7                                                      | 12(RE-05)/04-09 | 61     | 441 | 1.000 |      |          |           | 404.94         |
| (For credit purpose, Customs approved value is 16.50000  |                 |        |     |       |      |          |           | USD per 1 PCS) |
| 1 8                                                      | 12(RE-05)/04-09 | 61     | 441 | 1.000 |      |          |           | 404.94         |
| (For credit purpose, Customs approved value is 16.50000  |                 |        |     |       |      |          |           | USD per 1 PCS) |

TOTAL DEPB (INR)

14801.05

#### LICENSE DETAILS

| License/File No.                          | Adv. Lic. No./Recpt. No. | SLNO(E) Exp.Qty | IEC        | EXIM      |
|-------------------------------------------|--------------------------|-----------------|------------|-----------|
| Inv Item                                  |                          | SLNO(C) Imp.Qty | Unit       | FOB       |
| +Description                              |                          |                 | Unit       | Ind-Imp   |
| 6609                                      | 0099550                  |                 | 0588049522 | 11        |
| 1 1                                       |                          | 1 168.000       | PCS        | 876136.45 |
| +AUTOMATIC INSPECTION BENCH FOR DIAPHRAGM |                          | 1 0.000         | NOS        | Imp       |
| 1 2                                       |                          | 1 84.000        | PCS        | 314378.41 |
| +AUTOMATIC INSPECTION BENCH FOR DIAPHRAGM |                          | 1 0.000         | NOS        | Imp       |
| 1 3                                       |                          | 1 120.000       | PCS        | 68716.60  |
| +AUTOMATIC INSPECTION BENCH FOR DIAPHRAGM |                          | 1 0.000         | NOS        | Imp       |
| 1 4                                       |                          | 1 120.000       | PCS        | 68716.60  |
| +AUTOMATIC INSPECTION BENCH FOR DIAPHRAGM |                          | 1 0.000         | NOS        | Imp       |
| 1 5                                       |                          | 1 60.000        | PCS        | 35585.31  |
| +AUTOMATIC INSPECTION BENCH FOR DIAPHRAGM |                          | 1 0.000         | NOS        | Imp       |
| 1 6                                       |                          | 1 60.000        | PCS        | 35585.31  |

000065

NOS Imp

|                                           |   |        |              |
|-------------------------------------------|---|--------|--------------|
| OMATIC INSPECTION BENCH FOR DIAPHARAGM    | 1 | 0.000  | NOS Imp      |
| 7                                         | 1 | 60.000 | PCS 40493.63 |
| AUTOMATIC INSPECTION BENCH FOR DIAPHARAGM | 1 | 0.000  | NOS Imp      |
| 1 8                                       | 1 | 60.000 | PCS 40493.63 |
| AUTOMATIC INSPECTION BENCH FOR DIAPHARAGM | 1 | 0.000  | NOS Imp      |

(Page 4 of 5).  
Indian Customs EDI System / Export (ICES/E)

I.C.D. Tughlakabad, New Delhi  
Shipping Bill for Export

SB No : 1554103 / 13/12/2005

CHA : R-017/98 LOGISTICS INDIA

PrnDt : 14/12/2005 14:33

This consignment was not opened for physical examination by Customs

Port Of Ldg-Code : INTKD6

State of Origin : DELHI

Vessel Name

Voyage No.

Container Details

Con Det: CTR No

size Seal No.

/ Date

IPXU3304500

20

124294

/14-DEC-05

Warehouse Sealing

#### AR4 DETAILS

Inv Item AR4 No.

AR4 Date Division

Commissionerate

1 1 76

12/12/2005

Total FOB Value declared by Exporter for DEPB ITEMS : 32458.4599 USD

Total FOB Value declared by Exporter for NON-DEPB ITEMS : 0.0000 USD

Customs accepted Total FOB value for DEPB ITEMS : 32458.4599 USD

I/We declare that the particulars given herein are true and correct

Following is the list of Documents attached :

Inv Item Agency Name

Document Name

1 5

EPCG Licence

1 6

EPCG Licence

1 7

EPCG Licence

1 8

EPCG Licence

- -

INVOICES

- -

Packing List

- -

SDF Declaration

- -

Appendix II with 2A declaration

1 1

EPCG Licence

1 2

EPCG Licence

1 3

EPCG Licence

1 4

EPCG Licence

Signature of Exporter with Date

Let Export : AJEET SINGH Dated : 13/12/2005 Allowed for Shipment

Signature of Officer of Customs

Signature of Officer of Customs

Contents Received on Board

Date of Shipment

Signature of Master of Vessel

Signature of Officer of Customs

000066

EP COPY

LEO Date: 13/12/2005  
Indian Customs EDI System / Export (ICES/E)

LEO No : 17198

I.C.D. Tughlakabad, New Delhi  
Shipping Bill for Export

SB No : 1554103 / 13/12/2005

CHA : R-017/98 LOGISTICS INDIA

PrnDt : 14/12/2005 14:33

This consignment was not opened for physical examination by Customs

Port Of Ldg-Code : INTKD6

State of Origin : DELHI

## EXPORTER DETAILS

0388049322( ) PAN No. : AAACC4812FFT001  
CLUTCH AUTO LTD  
Branch # 0 2-E/14 (1ST FLOOR),  
JHANDEWALAN EXTN.  
NEW DELHI

## CONSIGNEE

M/S. D & W REBUILDERS INTL.  
2601, SISSON STREET  
BALTIMORE MD 21211  
UNITED STATES

Port of Loading : I.C.D. Tughl Total Pkgs. : 20  
Port of Discharge: Baltimore Loose pkts : 0  
Gross Wt(KGS) : 12300.000 Net Wt(KGS) : 11772.000  
Country of Dest : UNITED STATES No. of Ctrs. : 1  
Nature of Cargo : C  
Marks and Nos. :  
FOREX BANK ACC: 10007 RBI Waiver No/Date:  
FOB VALUE (INR) : 1480106.23 DBK (INR) : 0.00  
AD. Code : 0240029 Bank a/c No : XX

## INVOICE DETAILS

Invoice 1/1  
Inv. val : 1551076.70 INR 34014.84 USD  
FOB Val : 1480106.23 INR  
Inv. no. : EXP/2005-06/072 Inv Dt : 22/06/2005  
Nat. of con : CIF Curr (inv): USD  
Exchange rate : 1.00 (USD) = 45.600 (INR)

|                       | Rate | Currency | Amount                |
|-----------------------|------|----------|-----------------------|
| Insurance             | 0.00 | USD      | 56.37                 |
| Freight:              |      | USD      | 1500.00               |
| Discount:             | 6.00 | USD      | 2171.16               |
| Commission:           | 0.00 | USD      | 0.00                  |
| Other Deductions:     | 0.00 | USD      | 0.00                  |
| Packing Charges:      |      | USD      | 0.00                  |
| Nature of payment: DA |      |          |                       |
| Buyer Name & Address  |      |          | Period of Payment: 90 |
| < SAME AS CONSIGNEE > |      |          | Quota Certificates    |

0103081

000067

2006 13:12 INTERNATIONAL TOUCH INC  
L TOUCH CONSOLIDATOR INC.

17-48 182ND STREET, 2ND FLOOR  
AMERICA, NY 11413  
TEL: 718-6560831 FAX: 718-6560579

REFER NO.: 01512005  
INVOICE NO.: 01512005  
DATE: 12/22/2005

## ARRIVAL NOTICE / REMARKS

HOUSE B/L NO.: RSPFLDEIHAL005151  
MS HB/L NO.: MCANDELORF00157A

NOTIFY AND BILL TO: (DC1854)  
D & W Rebuilders  
2601 SIBSON ST  
BALTIMORE, MD 21211  
ATTN: KEVEN  
TEL: 410-235-8629  
FAX: 410-235-8862

CARGO LOCATION:  
SEAGIRT MARINE TERMINAL  
(410) 288-8651

SHIPPER NAME : CLUTCH AUTO  
VESSEL / VOYAGE : APL ALEXANDRIA / 5152W  
OCEAN B/L NO. : MCANDELORF000157  
PORT OF LOADING : INDIA  
PORT OF DISCHARGE : NORFOLK  
FINAL DESTINATION: BALTIMORE  
I.T NO./DATE/PORT: 807449252 01/11/2006 NORFOLK, VA  
ETA: 12/27/2005  
DATE: 01/16/2006  
ETA: 01/24/2006

| MARKS & NOS.                                                                              | DESCRIPTIONS                                 | GROSS WT/VOL                    |
|-------------------------------------------------------------------------------------------|----------------------------------------------|---------------------------------|
| 300 CATONS PKD IN 20 PALLETS<br>NOS. D & W BALTIMORE<br>15079 TO 15378<br>SEAL NO. 124294 | 01X20' FCL/FCL CONTAINER<br>AUTOMOTIVE PARTS | 12,300 KGS<br>27,127 LBS<br>CBM |

300 CTNS

\*\*\*\*\*

FCL/FCL

CONTAINER NO.: IPXU3304500

### Remarks:

BE ADVISED, PLEASE NOT THAT THIS CONTAINER HAVE BEEN PLACE ON HOLD BY  
S.LINE DUE TO CHARGES AT ORIGIN. PLEASE CONTACT YOUR SHIPPER AT ORIGIN  
A.S.A.P.

LAST FREE DAY AT RAMP 01/27/06

THANK YOU  
RAYMOND

REVISED  
1/24/06

RECEIVED  
1/24/06

Shipments still  
on Hold.

Please Contact your

TOTAL P.81

000068

ORIGINAL

RECEIVED

07 JUL 20 PM 12:20

OFFICE OF THE SECRETARY  
FEDERAL MARITIME COMM

FEDERAL MARITIME COMMISSION  
BEFORE: HON. CLAY G. GUTHRIDGE

---

Informal Docket No.: 1880 (F)

Clutch Auto Ltd.

Claimant,

v.

International Touch Consolidator, Inc.  
MacAndrews and Company, Ltd.  
Rosmarine Shipping Private Limited, and  
Hitos Liner Agency Private Limited

Consolidated Actions

Informal Docket No.: 1880(F)

Informal Docket No.: 1885(F)

Respondents.

Informal Docket No.: 1885(F)

D&W Clutch and Brake

Claimant,

v.

International Touch Consolidator, Inc.  
MacAndrews and Company, Ltd. and  
Rosmarine Shipping Private Limited

Respondents.

---

COUNTY OF QUEENS )

ss.:

STATE OF NEW YORK )

**AFFIDAVIT IN SUPPORT OF MOTION FOR SUMMARY JUDGMENT**

1. I am the Import Operation Manager at International Touch Consolidator (hereinafter "ITC"), and I am familiar with the facts in these cases. I hereby submit this affidavit in support of ITC's Motion for Summary Judgment.

000069

2- With respect to the goods in question, Clutch Auto Ltd., an Indian corporation (hereinafter "Clutch Auto"), retained the services of Rosmarine Shipping Private Limited, an Indian corporation (hereinafter "Rosmarine"), to handle the transport of auto parts from India to Baltimore, Maryland, U.S.A.

3- Upon information and belief, both Clutch Auto and Rosmarine agreed that the costs of the transportation would be paid directly from Clutch Auto to Rosmarine.

4- Upon information and belief, Clutch Auto contracted to sell these goods to D&W Clutch & Brake, Baltimore, Maryland, U.S.A. (hereinafter "D&W").

5- Rosmarine subcontracted out the transportation services to ITC. The vessel to carry the goods from India to the United States was arranged through Respondent MacAndrew & Company Ltd. USA (herein referred to as "MacAndrews").

6- The subject goods arrived in Baltimore under MacAndrews' custody. Upon information and belief Clutch Auto failed to pay the freight charges on this shipment to Rosmarine. ITC released their International House Bill of Lading but Rosmarine has refused to release the Master Bill of Lading, because Clutch Auto never paid the freight charges on this shipment.

7- Upon information and belief, Rosmarine claims that Clutch Auto owes them money on this shipment and many other shipments and Rosmarine has claimed a lien against these goods until Clutch Auto pays the freight charges on these goods. MacAndrews refuses to release the goods without presentment of the Master Bill of Lading.

8- ITC has released their International House Bill of Lading and has requested Rosmarine to resolve this matter with MacAndrews. Rosmarine refuses to release the Master Bill of Lading until Clutch Auto pays their shipping charges.

9- Without the original bill of lading, MacAndrew could not (and remains unable to)

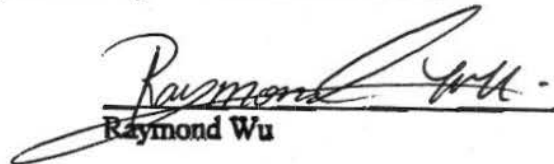
000070

release the goods in question to D&W.

10- Based upon the above facts, noting that (1) Clutch Auto never paid Rosmarine for the transportation of the subject goods, (2) Rosmarine has every right to withhold the issuance of the Master Bill of Lading until such time as Clutch Auto pays for the transportation; (3) Without receiving the Master Bill of Lading, McAndrews cannot release the goods in question; and (4) ITC is not responsible for paying Rosmarine, does not have control over the Master Bill of Lading and cannot cause the goods in question to be released, summary judgment dismissing the consolidated cases against the Respondents is proper.

WHEREFORE, the deponent herein, respectfully requests that the Commission enter summary judgment in favor of Respondents, dismissing the consolidated cases.

Dated: June 21, 2007

  
Raymond Wu

Sworn to before me

this 21<sup>st</sup> day of June, 2007

  
Notary Public

ELAINE LEUNG  
Notary Public, State of New York  
No. 01LE5064516  
Qualified in New York County  
Commission Expires August 28, 2010

000071

ORIGINAL

RECEIVED

07 JUL 20 PM 12:20

OFFICE OF THE SECRETARY  
FEDERAL MARITIME COMMISSION

FEDERAL MARITIME COMMISSION BEFORE: HON. CLAY C. CUTLER

Informal Docket No.: 1880 (F)

Clutch Auto Ltd.

Claimant,

v.

International Touch Consolidator, Inc.

MacAndrews and Company, Ltd.

Consolidated Actions

Rosmarine Shipping Private Limited,

and Informal Docket No.: 1880(F)

Hitos Liner Agency Private Limited Informal Docket No.: 1885(I)

Respondents.

Informal Docket No.: 1885(I)

D&W Clutch and Brake

Claimant,

versus.

International Touch Consolidator, Inc.

MacAndrews and Company, Ltd. and

Rosmarine Shipping Private Limited

Respondents.

**AFFIDAVIT IN SUPPORT OF MOTION FOR SUMMARY JUDGMENT**

1. I am the Managing Director at Rosmarine Shipping Private Limited, an Indian corporation (hereinafter "Rosmarine"), and I am familiar with the facts in these cases. I hereby submit this affidavit in support of ITC's Motion for Summary Judgment.

2. With respect to the goods in question, Clutch Auto Ltd., an Indian corporation (hereinafter "Clutch Auto"), retained the services of Rosmarine, to handle the transport of auto parts from India to Baltimore, Maryland, U.S.A.



ATTESTED

NOTARY PUBLIC  
DELHI (INDIA)

000072

3- Both Clutch Auto and Rosmarine agreed that the costs of the transportation would be paid directly from Clutch Auto to Rosmarine.

4- Upon information and belief, Clutch Auto contracted to sell these goods to D&W Clutch & Brake, Baltimore, Maryland, U.S.A. (hereinafter "D&W").

5- Rosmarine subcontracted out the transportation services to International Touch Consolidator ("ITC"). The vessel to carry the goods from India to the United States was arranged through Respondent MacAndrew & Company Ltd. USA (herein referred to as "MacAndrews").

6- The subject goods arrived in Baltimore under MacAndrews' custody. Clutch Auto failed to pay the freight charges on this shipment to Rosmarine. ITC released their International House Bill of Lading but Rosmarine has refused to release the Master Bill of Lading, because Clutch Auto never paid the freight charges on this shipment.

7- Rosmarine maintains that Clutch Auto owes them money on this shipment and many other shipments and Rosmarine has claimed a lien against these goods until Clutch Auto pays the freight charges on these goods. MacAndrews refuses to release the goods without presentment of the Master Bill of Lading.

8- ITC has released their International House Bill of Lading and has requested Rosmarine to resolve this matter with MacAndrews. Rosmarine refuses to release the Master Bill of Lading until Clutch Auto pays their shipping charges.

9- Without the Master bill of lading, MacAndrew could not (and remains unable to)



**ATTESTED**

NOTARY PUBLIC

000073

release the goods in question to D&W.

10- Based upon the above facts, noting that (1) Clutch Auto never paid Rosmarine for the transportation of the subject goods, (2) Rosmarine has every right to withhold the issuance of the Master Bill of Lading until such time as Clutch Auto pays for the transportation; (3) Without receiving the Master Bill of Lading, McAndrews cannot release the goods in question; and (4) ITC is not responsible for paying Rosmarine, does not have control over the Master Bill of Lading and cannot cause the goods in question to be released, summary judgment dismissing the consolidated cases against the Respondents is proper.

WHEREFORE, the deponent herein, respectfully requests that the Commission enter summary judgment in favor of Respondents, dismissing the consolidated cases.

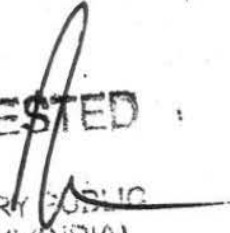
Dated: June 23, 2007

  
\_\_\_\_\_  
Rajesh Bhatia

Sworn to before me this \_\_\_\_\_ day of June, 2007

\_\_\_\_\_  
Notary Public



  
ATTESTED  
NOTARY PUBLIC  
DELHI (INDIA)

0000074  
23 JUN 2007

# ROSMARINE SHIPPING PVT. LTD

B-57, SECOND FLOOR, KALKAJI, NEW DELHI- 110019

Phone :- 91-11-51716550,51,52,53, Fax : 91-11-51716554, E-Mail :  
rosmarine@rosmarine.com, Website : www.rosmarineshipping.com

## DEBIT NOTE

OS/DEL490  
TO LTD

DATE : 15/12/2005

JTO LIMITED.  
FCL

BALTIMORE ( U.S.A.)  
IPXU-3304500/20

| BL NUMBER    | DESCRIPTION        | EXCH. RATE | RATE     | Container | AMOUNT IN RS. |
|--------------|--------------------|------------|----------|-----------|---------------|
| DEL/BAL/5151 | OCEAN FREIGHT- 20' | 46.70      | 2200.00  | 1         | 102740.00     |
| DEL/BAL/5151 | B/L CHARGES        |            | 750.00   |           | 750.00        |
| DEL/BAL/5151 | IHC - 20'          |            | 26200.00 | 1         | 26200.00      |
| DEL/BAL/5151 | ACD - 20'          | 46.70      | 25.00    | 1         | 1168.00       |

*P. Inv. # 72  
2W - Baltimore*

TOTAL AMOUNT IN RS.  
ONE HUNDRED THIRTY-ONE THOUSAND THREE HUNDRED FIFTY-EIGHT ONLY.

131358.00  
130158.00  
*PE*

For ROSMARINE SHIPPING PVT. LTD.



to be made by Crossed Chq./Draft only in favour of  
ROSMARINE SHIPPING PVT. LTD.  
are requested to ask for a stamped receipt for all payments made.  
@ 1% per annum is Chargeable on bill not paid on Presentation.  
rates are Subject to Delhi Jurisdiction.

000075

# CLUTCH AUTO LIMITED

## CHEQUE PAYMENT VOUCHER

Voucher No.

Date... 15/12/2005

DEBIT

Rs.

P.

PAYTO Rosmarine Shipping Pvt. Ltd

NO.

PARTICULARS

Amount

Rs.

DL 15/12/05

Invoice No Date Amt

490 15/12/05 130158

Add. Bal on A/c Payment 19842

150000

Total 150,000

CREDIT Canara Bank CH. No. 954571 DL 16/1/2006

Amt - 150000/-

Rupees one lakh fifty thousand only

A/c Code

CCSUPP

Prepared by

Passed for Payment

Fin. Mgr.

000076



केनरा बैंक  
CANARA BANK

Branch-Nehru Ground  
Faridabad

ANNEXURE - I

Ref:- Misc/

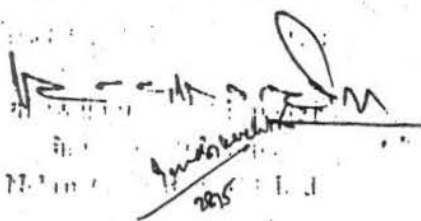
Dated:- 28 May 2007

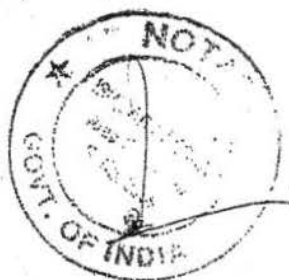
(To whom so ever it may concern)

This is certified that the following Cheques were debited to the A/c No 10007 of  
M/s Clutch Auto Ltd. On the date mentioned against it:-

| <u>Cheque No</u> | <u>Party's Name</u>           | <u>Amount</u> | <u>Debited to A/c on</u> |
|------------------|-------------------------------|---------------|--------------------------|
| 954571 ✓         | Rosemarine Shipping Pvt. Ltd. | 150000/- ✓    | 21.01.2006 ✓             |

This Certificate is being issued at the request of the party without any  
Responsibility on the part of the Bank.

  
28/5/07



000077  
7 AUG 2007